

INTERNATIONAL AND REGIONAL HUMAN RIGHTS REGIMES

PART I

1.0 General Introduction:

The objective of the course is to study and examine promotion and protection of human rights at the international and regional levels. It is arranged in 3 parts. **Part I** deals with a brief introduction to international law. This is because there is a need to concisely provide the students with the requisite grounding in the principles of international law, including international law of human rights and the sources thereof. It is also considered appropriate to highlight the definition and concept of human rights although this was undertaken last semester. **Part II** covers the international System, while **Part III** is devoted to the regional systems of human rights.

1.1 Definition and Concept of Human Rights

It is my understanding that you have covered this under various courses in this programme in the last semester. I do not propose to repeat it here, but it is important to point out that human rights have been characterised as those rights that society has agreed are fundamental to people everywhere, such as the right to life, the right to live without oppression, and the right to equal freedom of opportunity.¹ They have also been referred to as those rights without which we cannot leave as human beings.² This characterisation leaves a big question. Does a human being cease to be human simply because his rights have been violated or suspended? This statement may be analysed and discussed particularly in the light of the course on Philosophy of human rights.

Professor Luis Menkin has attempted to define human rights. For definition see, George W.K.L.Kasozi, Introduction to the Law of Lesotho: A Basic Text on

¹ See Questions and Answers: Protecting Human Rights, BBC News, World Edition (Wednesday 28 November 2001.

² The United Nations formulation - contained in: **Lear Levin:** Human Rights Questions and Answers, Third edition, UNESCO Publishing, 1996 p 4 and 15.

Law and Judicial Conduct, Vol. 1, Ministry of Justice Human Rights and Rehabilitation, 1999, p.15. Professor Menkin is also quoted by the Honourable Chief Justice of Uganda, Justice Benjamin J. Odoki, in Creating and Sustaining a Culture of Respect for Human Rights, Uganda Christian University Law Review, Vol 1. No.1 (Reissue) April 2009, p.5 – 19 at p.5.

1.2 The Nature and Significance of Human Rights

This section also has been examined in the previous courses, however it is important to look at cases that may help us in this regard. I have so far not yet secured an authority in Uganda hence reference may be made to jurisprudence formulated by eminent scholars and jurists in the area of human rights and cases from Courts else where.

Let us begin with the remarks the words of the **Chief Justice of Japan** quoted in: Joseph Garang and Others v The Constituent Assembly³. He is on record as having said:

“Fundamental human rights were not vested by the state but are eternal and universal institutions common to all mankind and antedating the state and are founded on natural law.”⁴

It is also useful to consider the words of the **Honourable Ismael Mahomed**, former President of the Court of Appeal for Lesotho, who later became the Chief Justice of the Republic of South Africa. He had this to say about human rights and their observance by the state in the case Attorney General of Lesotho v. Swissbrough Diamond Mines (PTY) Ltd and Another:

“...that the fundamental human rights which every citizen in a country is entitled to exercise inhere in him in consequence of his humanity and therefore inalienable; that no government however powerful be its military arsenal, however awesome its

³ 1997 (8) BCLR p. 1154 (Lesotho Court of Appeal. The relevant part is situated on p. 1160, paragraph D. (Butterworths Constitutional Law Reports) (South Africa)

⁴ Case No CS/93/1965. See also Akinola Aguda: Discriminatory Statutory Provisions and Fundamental Rights Provisions of the Constitution of Botswana, Lesotho and Swaziland, SALJ Vol 89, 1972 p 299. Aguda is a former Chief Justice of Botswana and former Judge of the Western State of Nigeria.

police power indeed even however popular be its actual or perceived support among the populace at any given time in its history, dare be permitted to invade fundamental rights - however humble, however impotent, be the victim of such transgression; that the courts will fiercely protect its citizens against the invasion of his rights; that the law has the sovereignty and life beyond the life of the rulers in a country who come and go”.

Finally, let us hear what another judge - **Ramodibedi J**, had to say about the what should be done about violation of human rights in the case of Molapo v DPP⁵. He said:

“In my judgment any violation of human rights regardless of the degree thereof deserves to be stamped out in a just democratic society that prides itself with a bill of rights entrenched in the Constitution such as Lesotho is”

1.3 The Nature and Definition of International Law and International Human Rights Law.

Although this course does not specifically focus on Public International Law proper, but rather on International and Regional Human Rights Regimes, it is important to look at what International Law means, because International Human Rights Law is an offshoot of Public International Law. It is anticipated that next academic year this will be taught as a separate course in the first Semester.

A conservative definition of International Law views international law as being:

“A body of rules governing the relations between states”

This definition is however limited, because it only focuses on state and not individuals and international organisations.

Starke, an eminent scholar of International Law defines International Law as:

⁵ 1997 (8) BCLR p 1154 at 1160 paragraph D.

“That body of law which is composed for the greater part of the principles and rules of conduct which states feel bound to observe, and therefore do commonly observe in their relation with each other, and which include also:

(a) the rules of law relating to the functioning of international organisations or organizations, their relations with each other and, and their relations with states and individuals; and

(b) certain rules of law relating to individuals and non state entities which are the concern of the international community”

It is now established in international law and also as seen in the words of **Starke** that individuals are now subjects of international law as enunciated in the famous Reparations for Injuries Suffered in the Service of the United Nations case⁶. In this case the United Nations had sought the opinion of the International Court of Justice, after the United Nations truce negotiator, one **Count Bernadotte**, a Swedish national, was killed by terrorists on 17th September 1948, in the new city of Jerusalem, which was in Israeli possession.

The International Court of Justice gave its advisory opinion, stating inter alia that:

“Accordingly the court has come to the conclusion that the organization is an international person. That is not the same thing as saying that it is a state, which it certainly is not, or that its legal personality and rights and duties are the same as those of the state. Still less is it the same thing as saying it is a super state...What it does mean is that it is a subject of international law capable of possessing international rights and duties and that it has capacity to maintain its rights by bringing an international claim.”

International law has since 1949 evolved and it is now accepted that individuals have international legal personality. What this means is that individuals are may

⁶ See: ICJ Reports (1949) p 174. This case is also documented in DJ Harris: Cases and Materials on International Law, Sweet and Maxwell, 1983, Third Edition p 114.

hold other international personalities including states accountable at the international level.

Although it is stated that international human rights law is a branch of international law, it is important to define it. **International human rights law is that branch of international law, which defines, elaborates, provides relevant principles and governs the promotion and protection of human rights at the international and regional levels.** This is what we will be studying in this course.

Now that we have ascertained what international law is and the subjects thereof, we may turn to look at the sources of this law.

1.4 Nature and Sources of International Law and International Human Rights Law

The nature and sources of International law are documented in Article 38 paragraph 1 of the Statute of the International Court of Justice. This Statute is part of the United Nations Charter. It states as follows:

“The court, whose function is to decide in accordance with international law such disputes as are submitted to it, shall apply:

- (a) International conventions, whether general or particular, establishing rules expressly recognized by contesting states;
- (b) International customs as evidence of general practice accepted as law;
- (c) the general principles of law recognized by civilized nations;
- (d) subject to the principles of Article 59, judicial decisions and teaching of most highly qualified publicists of the various nations as subsidiary means for the determination of rules of law.

In short the Article recognizes 5 major sources of international law, including international human rights law, namely: Conventions/Treaties, International Custom, General Principles of Law Recognised by Civilised States, Judicial Decisions and Teachings of Most Highly Qualified Publicists.

In addition to the above there is the sixth source, which is the Resolutions of the United Nations General Assembly. This is subject to certain conditions as will be seen later.

1.4.1 Treaties/Conventions

Treaties are a very important source of international law generally and human rights law in particular. It is however important to point out that there are 2 types of treaties. These are 1 - **Law Making Treaties** also known as **Traite's lois** and 2 - **The Ordinary Contractual Treaties** or **Traite's contracts**.

Generally speaking law making treaties are considered to lay down rules binding a large number of states, for example The Hague Conventions and various Conventions concluded under the auspices of the United Nations - such as the International Covenant on Civil and Political Rights (ICCPR) The International Covenant on Economic, Social and Cultural Rights (ICESCR) etc.

On the other hand Ordinary Contractual Treaties are in essence bilateral or treaties between a few parties, only directed to a special object affecting the interest of the signatories.

As far as the Law Making Treaties are concerned, their provisions are directly a source of international law, whereas this is not the case with Ordinary Contractual Treaties. A good example here is the treaty between Uganda, The Sudan and Egypt on the sharing of the waters of river Nile.

It is a condition precedent that for a Law Making Treaty to be a source of international law, it must have entered in force, that is it has been ratified by the requisite number of states parties.

Oppenheimer⁷ coined a useful definition of law making treaties. He says that Law Making Treaties are:

“...Such treaties...as stipulate new general rules for future international conduct or confirm, define, or abolish existing customary or conventional rules of a general character.”

Brierly⁸ looks at Law Making Treaties as:

“Those which the a large number of of states have concluded for the purpose of either declaring their understanding of what the law is on a particular subject, or of laying down rules of a general rule for the future conduct or of creating some international institution.”

Finally, it should be pointed out that as far as Law Making Treaties are concerned, they should be adopted by almost all the great states of the world as pointed out by **Sir Frederick Pollock**⁹ when he says:

“There is no doubt that, when all or most of the great powers have deliberately agreed to certain rules of general application, the rules approved by them have very great weight in practice even among those states which have never expressly consented to them. It is hardly too much to say that declarations of this kind may be expected in the absence of prompt and efficient dissent by some power of the first rank, to be part of the universally received law of nations within a moderate time.”

A state which ratifies a **Law Making Treaty** may make a reservation to any treaty, but such a reservation must be compatible with the treaty. What this means is that a state may not make a reservation which goes to the root of the treaty and renders it irrelevant. For example if the state ratifies The Convention Against Torture (CAT), such a state must not make a reservation to the effect that .. **the treatment meted out to criminals in order to extract information**

⁷ See

⁸ See.....

⁹ See Columbia Law Review 1902.

from them or the harsh punishment ordered by the courts of the land for murders or terrorists will not be brought into question.

1.4.2 International Custom

What does International Custom mean and how does it come about? According to **George Scelle**¹⁰ international custom results from similar and repeated acts by states. The acts must be repeated with a conscious conviction of the parties that they are acting in conformity with law. There are 2 important factors in the formation of international custom. These are:

1. There must be a material fact (The repetition of similar facts by the state)
- 2 . There must be a psychological element usually referred to as *opinio juris sive necessitatis* - That is the feeling on the part of the states that in acting as they do, they are fulfilling a legal obligation.

These 2 factors contribute to what is called **state practice**, which is emanate from the state's international organs - including the Head of State and the Minister of Foreign Affairs on the general policy and of the government.

According to **D'Amato**¹¹, state practice should be restricted to the physical acts of the state. Claims are not enough. A claim is not an act although such a claim may articulate a legal norm. This is because claims and statements by states are likely to conflict with one another, yet physical acts do not suffer from this defect.

1.4.3 Judicial Decisions

The decisions of the International Court of Justice are a useful source of international law. These decisions are authoritative. The International Court of Justice is constituted by judges and lawyers who are well trained and are from various legal jurisdictions. These learned men bring to the court vast experience. Their judgments are therefore solid and well grounded, hence authoritative. This source is considered by Article 38 of the International Court of Justice statute as a subsidiary source of law.

¹⁰ French Scholar who wrote his works around 1943. See.....

¹¹ See.....

1.4.4 General Principles of law recognized by civilized states

There are some jurists or legal philosophers such as **Verdross**, who argue that Article 38 of the ICJ Statute has the effect of incorporating natural law in international law. They even claim that positive rules of international law are invalid if they conflict with natural law.

There are those on the extreme side such as **Guggenheim** and **Tunkin**, who propound the view that paragraph (C) of article 38 of the ICJ adds nothing to what is already covered by treaty and custom. They argue that the general principles of national law are part of international law only to the extent that they have been adopted by states in treaties or in state practice.

There is also another group of philosophers, who may be considered to be middle of the road. They take the position that general principles recognised in national law form part of the pool of principles which an international judge is authorised by Article 38 to apply in an international dispute, if their application appears to be relevant and appropriate in the context of the inter state relations.

The main areas where these principles have been applied are the general principles of legal liability and reparation for breaches of international obligations or administration of justice. An example of this is found in the Chorzow Factory Case, where the Permanent Court (predecessor to the International Court of Justice) described the principle, that a party can not take advantage of its own wrong, as a principle accepted in the jurisprudence of international arbitration, as well as by domestic or municipal courts. Later in the above-mentioned case the court observed that it is a general conception of law that every violation of an agreement involves an obligation to make reparations. The court went further to say that as far as the administration of justice is concerned there are a number of references to the general principles of law in connection with the question of jurisdiction, procedure, evidence or other aspects of the judicial process.

1.4.5 Teachings of the most highly qualified publicists of the various nations.

The teachings of most highly qualified publicists or writers have been identified by article 38 of the ICJ as a subsidiary source of international law. There are some

writers who have been acknowledged as authoritative in the sphere of international law. For example **Grotious**, a Dutch national is considered the father of the law of nations. **Vattel**, who at the beginning of the 19th Century was considered a great authority and many scholars at the time relied on his works. There are others such as **Oppenheimer, Stake** etc. In the modern times scholars such as **Akehurst, Brownlie, Harris, Sieghart** are authoritative as far as international law is concerned.

1.4.6 Resolutions of the UN General Assembly

The resolutions of the General Assembly are not binding per se and do not impose any obligation on member states, notwithstanding the provision laid down in Article 25 of the Charter of the United Nations. General Assembly resolutions are not legally binding except when addressed to the subsidiary organs of the Secretariat.

Akehurst argues that most resolutions have nothing to do with international law, but that even when they do, they may simply be recommendatory in nature and as such, the text of a resolution can not be construed to represent the existing law. He notes further that the value of such a resolution varies in proportion to the number of states voting for it. If for example many states vote against it, its value as evidence of customary law is accordingly reduced.

1.5. A Brief Introduction to Relevant Principles and Doctrines in International Law.

(a) Sovereignty

States in the conduct of their affairs have an area, which is exclusively within their jurisdiction. The principle of sovereignty provides that other states, individuals or organisations must not interfere.

Sovereignty is reinforced by Article 2 paragraph 7 of the United Nations Charter. It states as follows:

“Nothing contained in the present Charter shall authorise the United Nations to intervene in matters which are essentially within the domestic jurisdiction of any state or shall require the members to submit such matters to settlement under the present Charter, but this principle shall not prejudice the application of enforcement measures under chapter VII Article 39 - 51.

Does sovereignty provide a state, which violates human rights with a shield? Can such a state dismiss international intervention simply because that state feels that such matters are within its domestic jurisdiction? Human rights today are not matters of domestic jurisdiction. Human rights violations are a business of every one, every where. States can not be permitted to shield behind the principle or doctrine of state sovereignty. When there are massive violations of human rights in any given country there is bound to be tension in the whole world. This violation becomes the concern of the international community, hence the need to intervene.

The principle of sovereignty does not entitle a state to ill treat aliens on its territory. Aliens too must be treated well. If aliens are expelled or treated unjustly and or unlawfully, other states may denounce such a move. This was the case in the 1970s, when the former President of Uganda, **Field Marshall Idi Amin Dada** expelled the British Asians, including Ugandan Asians. In the 1980 Nigeria expelled Ghanaians from her territory. All these were condemned by the international community. **The International Minimum Standards for the Treatment of Aliens** must be observed.

(b) Derogation

This is a provision in a treaty which permits a state party by unilateral declaration in certain prescribed circumstances not to adhere to the provisions of a human

rights treaty. This is usually during a state of emergency. It is important to point out that derogation must be expressly provided for e.g Article 4 paragraph (1) of the International Covenant on Civil and Political Rights, which provides as follows:

“In time of public emergency which threatens the life of a nation and the existence of which is officially proclaimed, the state parties to the present covenant may take measures derogating from their obligations under the present covenant to the extent strictly required by the exigencies of the situation, provided that such measures are not inconsistent with their obligation under international law and do not involve discrimination solely on the ground of race, colour, sex, language, religion, or social origin.”

(2) No derogation from Article 6,7,8 (paragraphs 1 and 2, 11,15,16, and 18 may be made under this provision Any state party to the present covenant availing itself of the right of derogation shall immediately inform the other state parties to the present covenant through the intermediary of the Secretary General of the U.N of the provisions from which it has derogated and of the reasons by which it was actuated. A further communication shall be made through the same intermediary, on the date on which it terminates such derogation.

Similar provisions are found in the European Human Rights Convention - Article 15, Economic Social and Cultural Rights Article 30, American Convention of Human Rights Article 27. What about the African Charter on Human and People's Rights?

(c) Denunciation

A treaty, like a domestic contract may come to an end through many ways. It may come to an end as a result of the consent of the parties, when there is material breach by one of the parties, when there is a supervening impossibility of performance, or when there is a fundamental change of circumstances. Denunciation however is one of the ways a treaty may come to an end.

Denunciation is the procedure by which a state party to a treaty may unilaterally abrogate its obligation under the treaty in question. Denunciation is usually conveyed by written notification to the concerned parties, or to the central depository.

Where a treaty does not expressly provide for denunciation, a state party can not abrogate its obligations under the treaty, unless a right of denunciation is implied by the nature of the treaty.

An example of denunciation is provided for under Article 12 (1) of the Optional Protocol to the International Covenant on Civil and Political Rights. It provides as follows:

“Any state party may denounce the present protocol at any time by written notification addressed to the Secretary General of the United Nations. Denunciation shall take effect three months after the date of receipt of the notification by the Secretary General.”

(2) Denunciation shall be without prejudice to the continued application of the provisions of the present protocol to any communication submitted under Article 2 before the effective date of denunciation”

Similar provisions are found in the European Convention on Human Rights- Article 65 (1 – 4), International Covenant on Social, Economic and Cultural Rights Article 37 (1-3), The American Convention on Human Rights Article 78 (1 – 2. What about the African Charter?

1.5.2 Monism and Dualism

When we discuss the issue of monism and dualism, we are talking about international law and municipal or domestic law and whether there are 2 separate legal orders or regimes existing independent of each other.

There is a school of thought, which is of the view that the two systems are in essence one. This school of thought is known as the monist school. On the other hand there is another school of thought, which is of the view that there are 2 legal systems, which exist side by side and that neither is superior nor inferior to the other.

This school further notes that these 2 systems govern two jurisdictions, namely the international jurisdiction and the domestic or municipal or national jurisdiction.

The dualist school argues that in the event of conflict between these systems there are clearly established rules, which help to resolve the conflict, namely the rules of Private International Law, or what is some times referred to as **Conflict of Laws**.

1.5.3 Inalienability

International law and international human rights law have borrowed this concept from ethics and philosophy. To alienate means to take away or give away. Fundamental human rights in essence should not be taken away or be given up. They inhere in the human person, eg the right to life. There are other rights, which may not be necessarily referred to fundamental human rights, but rather as right. These may be renounced, for example the right to marry.

As far as international human rights law is concerned, when we talk about inalienability of human rights we are focusing on fundamental human rights.

1.5.4 Indivisibility, Interconnectedness and Interrelated

Although in the international human rights system we talk about civil and political rights on the one hand and economic, social and cultural rights on the other, and although these rights are protected by 2 international human rights instruments, human rights are a distinct whole, hence they are said to be indivisible. They are interconnected and interrelated. For example the right to life is connected to the right to food, shelter and a clean environment.

These rights should be treated in the same way. Experience has shown that there is a tendency to elevate civil and political rights and to accord less importance to the economic, social and cultural rights.

The reason for this is the ideological divide, which had, until a few years ago polarized the world into two blocks, namely the Western and Eastern blocks. The Western block countries tended to concentrate and emphasise the civil and political rights, while the Eastern block dwelled on the economic, social and cultural rights.

A good example may be provided by an illustration by a cartoonist, with a caption, which posed the following questions:

When and where do human rights begin? Do they begin at the police station or after breakfast?

1.5.5 Universalism and Relativism

Scholars have come up with explanations regarding the character of human rights. Those who advocate the universality of human rights claim that rights such as equal protection, physical security, freedom of speech, freedom of religion and association are and must be the same every where. Reference to every-where is meant to mean all over the world.

The proponent of this view disregard culture as being relevant in the interpretation and realization of human rights. What they seem to overlook is that some basic rights, such as the right to a fair trial in criminal proceedings, permit culturally influenced forms of implementation. For example it is not imperative that all states of the world must follow the jury trial as is the case in United Kingdom and United States of America, for it to be said that the all states of the world observe fair trial in their criminal justice systems. What about the right to political participation? Must it be the same every-where? I do not have the answer. It would be useful for the scholars answer this question

Cultural relativists argue that most or some rights and rules about morality are embedded or enclosed in culture. Culture is used in this context in a wider sense beyond indigenous traditions and customary practices. It includes political and religious ideologies as well as institutional structures.

The cultural relativists are also of the view that the world contains diversity in views about right and wrong, that is linked to the diverse underlying cultures. They also argue that no culture is or state whether or not in the guise of enforcing human rights, is justified in attempting to impose on other cultures or states, what must be understood to be ideas associated particularly with it.

Cultural relativists assume that there is no culture whose values and customs dominate in a moral sense. They maintain that every culture has an equal right to be different, distinct and unique.

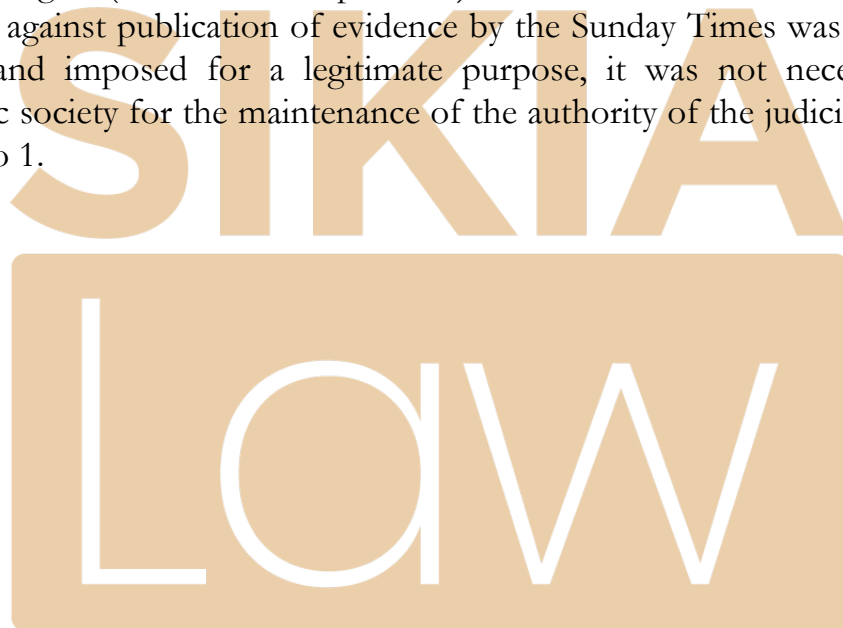
In conclusion cultural relativists advance the argument that there are different perceptions of human rights by different societies or communities, such that what may constitute violation of human rights in one culture may not be considered as violation of human rights in another culture. The main criticism against the relativist school of thought is that there are some practices, which may be performed in the name of culture, yet these practices are contrary to international human rights standards. In this regard one may point to circumcision of women or what has now been referred to as Female Genital Mutilation. Another criticism is that cultural relativists seem to believe that culture is static. These issues may be further explored by the students on their own.¹²

1.5.6 Margin of Appreciation

The doctrine of Margin of Appreciation has been mainly applied in interpreting the European Convention of Human Rights as we will see later. The doctrine primarily seeks to restrain courts when reviewing executive actions in order not to upset the distribution of powers within the legal and constitutional system, especially where an issue at stake falls within the core responsibility of the executive organ and requires a discretion.

¹² For further reading see: Lone Lindholt: Questioning the Universality of Human Rights: The African Charter on Human and People's Rights Botswana, Malawi and Mozambique, Sage ... 19..., p24 – 25; See Karin Poulsen: Human Rights and Cultural Change..... P6; See also George W.K.L.Kasozi: Implementation of Human Rights Standards: A Study of Lesotho's Laws with the International Covenant on Civil and Political Rights 1966, with Particular Reference to Gender Based Discrimination, Research Partnership, Danish Centre for Human Rights, 2001, p 52 – 54.

The Sunday Times Case¹³ is a useful example. In this case, following the thalidomide tragedy, many parents sued the distillers, the British manufacturers for negligence in 1972. While negotiations to settle the claims were pending, the Sunday Times planned the publication of an article which reviewed the evidence on the question whether distillers had been negligent. The Attorney General obtained an injunction from the Divisional court, preventing the publication of the articles on the ground of contempt. The injunction was discharged by the Court of Appeal, but restored by the unanimous decision of the House of Lords. Sunday Times then appealed to the European Court of Human Rights, which reversed the decision of the House of Lords. The European Court of Human Rights held that the injunction contravened section 10 of European Convention of Human Rights (Freedom of Expression). It was further held that although the restriction against publication of evidence by the Sunday Times was prescribed by law¹⁴ and imposed for a legitimate purpose, it was not necessary in a democratic society for the maintenance of the authority of the judiciary. (It was 11 votes to 1.



¹³ See

¹⁴ There are 2 requirements here. 1. Law must be adequately accessible. 2. Law ought to be formulated with sufficient precision.

PART 11

2.0 THE INTERNATIONAL HUMAN RIGHTS SYSTEM

There is no universal Parliament, which puts in place the legal framework or legislates for the global community, yet it is common cause that there is an international regime, which defines, promotes and protects human rights at the international level. How is this regime put in place?

According to **Professor Sieghart**¹⁵, the modern international law making procedure begins with the adoption of a declaration or a resolution by a major organ of an inter-governmental organization such as the General Assembly of the United Nations. An example of a declaration is the Universal Declaration of Human Rights 1948.

A declaration or resolution passed by such a body does not by itself establish or create a new international law. However, over a period of time such a declaration or resolution may be cited as evidence of the consistent practice of states and thereby provide the necessary consent for the development of international law. **(State Practice)**

Following such a declaration or resolution steps may be taken to convert its principles into the form of a detailed and binding treaty, negotiated in the same body (though sometimes in a different inter-governmental forum).

When such a treaty enters into force, it immediately creates specific obligations in international law for those states, which have ratified the treaty in question. An appropriate example here is the ICCPR.

Global or international and regional human rights treaties have 4 common characteristics. These are:

¹⁵ See Sieghart, Paul: International Law of Human Rights, Clarendon Press, 19.... P

1. They specify the particular obligations of all their states parties in respect in respect of certain human rights and fundamental freedoms of all people within their respective territories and subject to their jurisdictions.
2. They contain general provisions applying to the protection or realization of those rights.
3. They define and circumscribe the rights and freedoms concerned, and
4. They establish institutions and procedures for the international supervision, interpretation and application of the substantive provisions.

Let us now focus our attention on the to the international regime.

2.1 Founding of The United Nations

In 1945 delegates from 50 countries met in San Francisco, in an international forum, which was intended to prepare the United Nations Charter. These delegates worked on the proposals that had been forwarded earlier on in 1944, by representatives of China, the Soviet Union, United Kingdom and United States.

2.2 The Charter of The United Nations

The above mentioned international conference came up with a Charter, which was extensively negotiated and finally signed in San Francisco, USA, on 26th June, 1945. It was called the United Nations Charter. The name United Nations was first used by the United States **President Franklin Roosevelt**. Many Articles of this Charter have been amended since 17 December 1963. These include Articles 23, 27, 61.

The United Nations was preceded by an organisation known as the League of Nations, which was founded in 1919, during the First World War under the Treaty of Versailles. The main objective of the League of Nations was to achieve peace and security. The **League of Nations** ceased to exist after it failed to prevent the Second World War.

2.3 The Purposes of the United Nations

The purposes of the United Nations are detailed in Article 1 of the Charter of the United Nations which states as follows:

- (1) To maintain international peace and security and to this end to take effective collective measures for the prevention and removal of threats to peace and for the suppression of acts of aggression or breaches of peace and to bring about conformity with principles of justice and international law, adjustment or settlement of international disputes or situations which might lead to a breach of peace.
- (2) To develop friendly relations among nations based on respect for the principle of equal rights and self-determination of peoples, and to take appropriate measures to strengthen universal peace.
- (3) To achieve international cooperation in solving international problems of an economic, social, cultural or humanitarian character, and in promoting and encouraging respect for human rights and fundamental freedoms for all without distinction as to race, sex, language, or religion; and
- (4) To be a centre for harmonising the actions of nations in the attainment of these common ends.

Although the United Nations Charter does not specifically mention substantive rights, it is very important in providing for promotion and protection of human rights as seen in paragraph 3 above. This is also documented in Articles 55 and 56 of the Charter, whereby all member states of the UN promise to take joint and separate action to achieve universal respect for fundamental freedoms for all.

For a detailed discussion of the milestones in the United Nations History and Achievements see www.un.org. The web-site documents 50 achievements in various areas including promoting human rights generally, promoting women's rights and promoting worker's rights.

2. 4 The Structure of the United Nations

Article 7 of the United Nations Charter establishes six principal organs. These are: The General Assembly, The Security Council, The Trusteeship Council, The International Court of Justice, and The Secretariat.

The United Nations entire body or family as it is some times referred to is much larger. It has 15 agencies and several programmes. We will look at some of these programmes, particularly with emphasis on their involvement in the promotion and protection of human rights.

Paragraph 2 of article 7 provides for formulation of such subsidiary organs of the United Nations as may be found to be necessary.

2.4 .1 (a) The General Assembly (Composition)

Membership is open to all members of the United Nations. Each member state is entitled to have not more than 5 representatives in the General Assembly. For details see Article 9 of the United Nations Charter.

There are six major Committees through which General Assembly works. These are:

- First Committee: Disarmament and International Security
- Second Committee: Economic and Financial
- Third Committee: Social Humanitarian and Cultural
- Fourth Committee: Special Political and Decolonisation
- Fifth Committee: Administration and Budgetary
- Sixth Committee: Legal

2.4.1 (b) Functions and Powers of the General Assembly

The General Assembly may discuss any question or issue within the ambit of the United Nations Charter or matters pertaining to the powers and function of any organs provided for in the Charter, except where the question at hand is a subject matter of discussion by or before the Security Council. The General Assembly is also empowered to make recommendations to the members of United Nations and the Security Council. See Article 10

Article 11 (1) provides for consideration by the General Assembly of the general principles of co-operation in the maintenance of international peace and security, including the principles governing disarmament and regulation of armaments, and make recommendations with regard to such principles to the members of the United Nations or Security Council.

Paragraph 2 of article 11 empowers the General Assembly to discuss any question pertaining to the maintenance of peace and security forwarded to the General Assembly by any member of the United Nations or Security Council, or any nation, which is not a member of the United Nations in accordance with Article 35 paragraph 2.

Paragraph 3 of Article 11 permits the General Assembly to draw to the attention of the Security Council any situation likely to jeopardize or endanger international peace and security.

As alluded to in Article 10, Article 12 paragraph 1 specifically prohibits the General Assembly to make any recommendation to the Security Council, if the Security Council is seized with any dispute or situation, unless the Security Council so requests.

Paragraph 2 of Article 12 authorises the Secretary General, with the consent of the Security Council, to notify the General Assembly at each session of any matters relative to the maintenance of international peace and security, which are being dealt with the Security Council. The Secretary General is further required to notify the General Assembly, or the members of the United Nations, if the General Assembly is not in session, immediately the Security Council ceases to deal with such matters.

As alluded to in Article 10, Article 12 specifically prohibits the General Assembly to make any recommendation to the Security Council, if the Security Council is seized with any dispute or situation, unless the Security Council so requests.

Article 13 mandates the General Assembly to initiate studies and to make recommendations for purposes of:

- (a) Promoting international cooperation in the political field and encouraging the progressive development of international law and its codification.
- (b) Promoting international cooperation in the economic, social, cultural, educational and health fields, and assisting in the realization of human rights and fundamental freedoms for all without distinction as to race, sex, language, or religion.

The General Assembly is empowered by article 14 to make recommendations on measures for peaceful adjustment of any situation, while Article 15 provides for receipt and consideration by the General Assembly of annual or special reports from the Security Council. Article 16 provides for the General Assembly functions with respect to the International Trustee System.

2.4.1 (c) Meetings of the General Assembly

The General Assembly meets in regular and special sessions as required. Special sessions are convened by the Secretary General at the request of the Security Council, or of the majority of the member states. See Article 20.

The General Assembly adopts its own rules of procedure. It also elects a president. It may establish organs it deems necessary in order to perform its functions.

2.4.1 (d) Voting in the General Assembly

Voting in the General Assembly is provided for under Article 18 paragraph 1, which states that each member of the General Assembly shall have one vote. Paragraph 2 requires that important questions be decided by a two-thirds majority of members present and voting. The important issues include maintenance of international peace and security, the election of non permanent members of the Security Council, the

election of members of the Economic and Social Council, (ECOSOC), the members of the Trusteeship System, the admission of new members of the United Nations, the suspension of rights and privileges of membership, the expulsion of members, questions relating to the operations of the Trusteeship System, and budgetary questions.

A member of the United Nations which is in arrears in the payment of financial contributions to the organization has no right to vote in the General Assembly, if the amount or its equivalent exceeds the amount of contribution due from such a member for the preceding two full years.

The General Assembly has discretion to allow such a member to vote if the General Assembly is satisfied that the failure to pay is due to conditions beyond the control of the members¹⁷. See Article 19.

2.5 (a) The Security Council

This is provided for under Article V of the United Nations Charter. Article 23. Paragraph 1 provides for that the Council shall comprise fifteen members of the United Nations. It also provides for the five permanent members, which include: **The Republic of China, France, the Union of Soviet Socialist Republics (Russia), the United Kingdom of Great Britain and Northern Ireland, and United States of America.** There is also provision for election by the General Assembly of ten other members. In this regard the General Assembly is guided by the contribution of members of the United Nations to the maintenance of international peace and security, other purposes of the organization and also equitable geographical distribution.

The non-permanent members of the Security Council are elected for a period of 2 years. According to paragraph 2, in the first election of the nonpermanent members, after the increase of membership of the Security Council from eleven to fifteen, two of the additional members shall be chosen for a term of one year. It also provides that a retiring member shall not be eligible for re election.

Each member of the Security Council is entitled to have one representative. On voting and the rule of great power or great power unanimity, or veto powers of the Security Council, see Articles 28 – 32.

¹⁷ This provision was at one time applied to Mozambique during the civil war. I think it has also been applied to some other country in West Africa. There may be others.

For current membership see the UN website, but until recently it stood as follows: France, Germany, Guinea, Mexico, Pakistan, Russia Federation, Spain, Syria, Arab Republic, United Kingdom, United States of America, Angola, Bulgaria, Cameroon, China and Chile.

2.5 (b) The Functions and Powers of the Security Council

These are spelled out in articles 24 – 26. In particular Article 24 paragraph 1 states that in order to ensure prompt and effective action by the United Nations, its members confer on the Security Council primary responsibility for the maintenance of international peace and security, and agree that in carrying out its duties under this responsibility the Security Council acts on their behalf.

Paragraph 2 provides that in discharging these duties the Security Council shall act in accordance with the purposes and principles of the United States. The Specific powers granted to the Security Council for the discharge of these duties are laid down in Chapter VI, VII, VIII and XII. In short they include: pacific settlement of disputes, actions with respect to threats to peace, breaches of peace, acts of aggression, regional arrangements and international trusteeship system.

Paragraph 3 of Article 24 requires the Security Council to submit annual reports and whenever it considers it necessary special reports to the General Assembly for consideration.

Article 25 enjoins members of the United Nations to agree to accept to carry out the decisions of the Security Council, while Article 26 confers on the Security Council responsibility for formulating plans to regulate armaments in collaboration with the **Military Staff Committee**, provided for under Article 47. This arrangement is intended to promote the establishment of international peace and security. Does it work?

2.5 (c) The Challenges of Security Council

The Security Council is a well-intentioned organ of the United Nations. However well intentioned it may be, it has had some limitations and challenges in the past and even in our present time.

The main problem facing this organ is getting the necessary consensus within the Security Council on any given issue or case. The Human Rights Watch 2000 came up with an interesting observation regarding the performance of the Security Council. The report says:

“As the Council functions today, with five permanent members free to exercise their vetoes for the most parochial reasons, it (Security Council) can-not be counted on to authorize intervention even in direct circumstances.

China and Russia seem pre- occupied by perceived analogies to Tibet and

Chechnya. The United States is sometimes paralysed by an isolationist

Congress and a risk averse Pentagon. Britain and France have let commercial Or cultural ties to stand in the way”

With the above one may conclude with the position the Security Council adopted when the United States and the coalition of the willing invaded Iraq and overthrew the government.

2.6 (a) The Economic and Social Council

The Economic and Social Council is a principal organ of the United Nations as stipulated in Article 7 of the United Nations Charter.

The composition of **ECOSOC** is provided for under **Article 61** paragraph 1. It says: The Economic and Social Council shall consist of **fifty-four** members of the United Nations, elected by the General Assembly.

Paragraph 2 states that: subject to the provisions of paragraph 3, eighteen members of the Economic and Social Council shall be elected each year for a term of three years. A retiring member shall be eligible for re-election.

Paragraph 3 provides for the election of the members of the expanded ECOSOC and their terms of office are staggered to allow for continuity. Each member of ECOSOC has one representative. The fifty-four members elected for a three year period are fielded on the basis of geographical distribution as follows:

14 Seats - African States

11 Seats - Asian States

06 Seats - Eastern European States

10 Seats - Latin American and Caribbean States

13 Seats – Western European States and Others

The African States who are members of ECOSOC are: Benin, Burundi, Congo, Egypt, Ethiopia, Ghana, Kenya, Libya Arab Jamaharia, Mozambique, Nigeria, Senegal, South Africa, Uganda and Zimbabwe.

2.6 (b) The Mandate of ECOSOC

This Council plays a vital role in the United Nations System. It coordinates the work of 14 United Nations specialized agencies. These are:

It also coordinates 10 functional regional commissions, receives reports from 11 United Nations funds programmes, which include: the Economic Commission for Africa (ECA), Europe, Latin America and Caribbean, Economic and Social Commission for Asia, and Economic and Social Commission for Western Asia.

ECOSOC is also responsible for providing policy recommendations to the United Nations System and member states.

The United Nations Charter mandates ECOSOC to be responsible for promoting higher standards of living, full employment, economic and social progress, identifying solutions to international economic, social and health problems, facilitating international cultural educational cooperation, as well as encouraging respect for human rights and fundamental freedoms.

In executing its mandate ECOSOC works in consultation with academics, business sector representatives and registered non-governmental organizations which number more than 2100.

2.6 (c) The Meetings of ECOSOC

ECOSOC holds a four-week main session in July of every year and it alternates between New York and Geneva venues.

The main or substantive session comprises high-powered representatives, which includes national cabinet ministers, heads of international agencies and high level officials. The main focus is on selected themes of global importance.

Last years main session was chaired by ECOSOC President, **H.E Gert Rosental**. It considered issues pertaining to promoting an intergrated approach to rural development in developing countries for poverty eradication and sustainable development.

ECOSOC is under the guidance of the bureau which is elected by the council at large at the beginning of each annual session. The main functions of the bureau is to propose (1) The agenda, (2) Draw up a programme of Work, (3) Organize the session with the support of the United Nations Secretariate.

2.6 (d) Achievements of ECOSOC

ECOSOC has in recent years played a leading role in important policy areas. For example in 1999 a high level segment issued a manifesto on poverty. This manifesto was instrumental in the formulation of the Millennium Development Goals approved by the United Nations Millennium summit in New York. It should also be remembered that the ministerial declaration of the high level segment in 2000 proposed specific actions to address digital divide leading directly to the formation of the **Information and Communications Technology Task force**.

In the year 2002 ECOSOC's consideration of African development culminated into the first ever formal international endorsement of the **New Partnership for African Development (NEPAD)**.

In 1998 ECOSOC during their non substantive sessions initiated a tradition of meeting each April with finance ministers heading key committees of Bretton Woods Institutions, the World Bank and International Monetary Fund. These consultations paved the way for the success of the international conference on financing for development held in March 2002 in **Monterrey Mexico**.

2.7 The Trusteeship Council

The Council is one of the main organs of the United Nations. The composition of the Trusteeship Council is provided for under article 86 of the United Nations Charter. Paragraph 1 states as follows:

“The Trusteeship Council shall consist of the following members of the United Nations

- (a) Those members administering trustee territories
- (b) Such of those members mentioned by name in Article 23 as Are not administering trust territories: China, France, Russian Federation, U.K, and USA.
- (c) As many other members elected for 3 year terms by the General Assembly as may be necessary to ensure that the total number Of members of the Trusteeship Council is equally divided Between these members of the United Nations, which administer Trust territories and those, which do not.

The Trusteeship Council suspended its operations on 1st November 1994, after the independence of Palau, the last remaining United Nations territories on 1st October 1994. The Trusteeship Council had earlier on 25th May 1994, amended its rules of procedure and agreed to stop their annual meetings and instead meet as occasion required, or by its decision, or at the decision of its president, or at the request of the majority members of the General Assembly or Security Council. The reason for this is that the aims of the Trustee Council have been fulfilled, because all trust territories have got self government or independence, either as separate states or by joining neighbouring independent countries

2.7 The International Court of Justice (ICJ)

The International Court of Justice is another principal organ of the United Nations. Article 92 of the United Nations provides as follows:

“The International Court of Justice shall be the principal organ of the United Nations. It shall function in accordance with the annexed Statute, which is based upon the Statute of the Permanent Court of

Justice¹⁶ and forms an integral part of the present Charter.”

The Statute of this court is also part of the United Nations Charter. According to Article 93 paragraph 1 of the United Nations Charter all members of the United Nations are by virtue of membership parties to the Statute of the International Court of Justice.

Provision is also made for a state, which is not a member of the United Nations to become a party to the Statute of the International Court of Justice. The General Assembly, upon the recommendations of the Security Council, determines the conditions of becoming such a party – see Article 93 paragraph 2.

According to Article 94 each member of the United Nations undertakes to comply with the decisions of the International Court of Justice, in any case to which it is a party.

In the event that any party to a case fails to perform the obligations incumbent upon it under the judgment handed down by the court, the other party is entitled to have recourse to the Security Council, which may if it sees it necessary, make recommendations or decide upon measures to be taken to give effect to the judgment of the ICJ. See Article 42 (2) of the ICJ.

The existence of the Court does not preclude or prevent the members of the United Nations from accessing other tribunals with a view to getting a solution

¹⁶ The Permanent Court of International Justice was created by the League of Nations between 1922 – 1946.

to their problems, if the member states have agreed to refer their problem to such other tribunals. See Article 95.

In terms Article 96 paragraph 1, the General Assembly or Security Council may request the International Court of Justice to give an advisory opinion on any legal question. See the Reparations Case¹⁷ discussed in part I of this course.

The other organs of the United Nations and the specialized agencies may at any time be authorized by the Secretary General to request the ICJ to give an advisory opinion on legal questions arising within the scope of their activities.

The court therefore deals with civil matters. It is manned by 15 judges. The full list is as follows:

- 1 Shi Jiuyong (China) (President)
- 2 Raymond Ranjeva (Madagascar) Vice President
- 3 Gilbert Guillaume (France) Judge
- 4 Abdul G. Koroma (Sierra Leone) Judge
- 5 Vladlen S. Vereshchetin (Russian Federation) (Judge)
- 6 Rosalyn Higgins (U.K.) (Judge)
- 7 Gonzalo Parra-Aranguren (Venezuela) (Judge)
- 8 Pieter H. Kooijmans (Netherlands) (Judge)
- 9 Francisco Rezek (Brazil) (Judge)
- 10 Awn Shawkat Al- Khasawneh (Jordan) (Judge)
- 11 Thomas Buergenthal (USA) Judge
- 12 Nabil Elarby (Egypt) Judge
- 13 Hisashi Owada (Japan) (Judge)
- 14 Bruno Simma (Germany) (Judge)
- 15 Peter Tomka (Slovakia) (Judge)

The Registrar is **Mr. Philippe Cuvreur** from Belgium¹⁸.

¹⁷ See: ICJ Reports (1949) p 174. This case is also documented in DJ Harris: Cases and Materials on International Law, Sweet and Maxwell, 1983, Third Edition p 114.

¹⁸ For further information about the court and its judgments see www.icj.org

2.8 (a) The International Criminal Court Established by the Rome Statute

It is important to draw a distinction between the International Court of Justice and the International Criminal Court. The former was established in 1945 after the San Francisco Conference, with civil jurisdiction on matters between states. The latter is a relatively recent creation, as we will see later.

As the name suggests the latter is an international court with criminal jurisdiction.

2.8 (b) History and Background

The United Nations has been concerned about establishing an international criminal court since the 1950s, in order to bring justice those responsible for crimes such as genocide. This is reflected in the General Assembly resolution 260 of December 1948, in which it was inter alia stated that:

“Recognising that at all periods of history genocide has inflicted great loss on humanity; and being convinced that, in order to liberate mankind from such an odious scourge, international cooperation is required”

The said General Assembly resolution adopted the **Convention on the Prevention and Punishment of the Crime of Genocide**. Article I of the Convention identifies genocide as “a crime under international law”. Article VI provides that persons charged with genocide shall be tried by a competent tribunal of the state in the territory of which the act was committed or by such international penal tribunal as may have jurisdiction.

The General Assembly also called upon the **International Law Commission** to study the desirability of establishing an international judicial organ for the trial of persons charged with genocide. **International Law Commission** came to a conclusion that the establishment of the international court to try persons charged with genocide or other crimes of similar gravity was desirable and possible.

2.9 (c) Preliminary Efforts on Founding of the International Criminal

Court

Accordingly the General Assembly established a committee to prepare proposals for the founding of a criminal court. The Committee commenced work on the first draft Statute in 1951, which draft statute was revised in 1953. The General Assembly however decided to postpone deliberation of the draft Statute pending the adoption of a definition of: what constitutes aggression?

From 1953 the question of establishing an international court has been considered periodically. In 1989 **Trinidad and Tobago** requested the General Assembly to request the **International Law Commission** to resume work on the International Criminal Court, with a wider jurisdiction to cover drug trafficking. The General Assembly did as requested and the **International Law Commission** went on with its work.

In 1993, when the turbulences in the former Yugoslavia broke out, and ethnic cleansing took place, war and crimes against humanity were committed. These once again were brought to the international community's attention.

In order to bring an end to the wide spread suffering, the United Nations Security Council established an ad hoc **International Tribunal for the former Yugoslavia**. This tribunal was intended to bring to justice the individuals who were responsible for the atrocities. It was expected that this would bring about deterrence.

In the mean time the **International Law Commission** completed its work on the draft Statute for the international criminal court and submitted the same to the General Assembly.

2.8 (d) Establishment of the International Criminal Court

The General Assembly then established an ad hoc **Committee on the establishment of an International Criminal Court**. Its main brief was to consider the major substantive issues arising from the draft Statute. The said ad hoc Committee met two times in 1995. After the General Assembly considered the ad hoc Committee's report, it created the **Preparatory Committee on the Establishment of an International Criminal Court**, to prepare a widely acceptable and consolidated draft text for submission to a diplomatic conference.

This Preparatory Committee, which met from 1996 to 1998, held its final session between March and April 1998 and completed its drafting work.

At its 52nd session, the General Assembly decided to convene a Diplomatic Conference of Plenipotentiaries on the Establishment of an International Criminal Court. The said conference was held in Rome, Italy from 15 – 17 July 1998 to finalise and adopt a convention on the establishment of an international criminal court.

The Rome Statute of the International Criminal Court entered into force on 1st July 2002, in accordance with article 126. 139 state representatives have so far signed the statute.²¹ Uganda signed the Statute on 17 March 1999 and ratified it in June 2002.

²¹ Ratification and Implementation > Ratification of the Rome Statute: Supporting ratification of the Rome Statute of the ICC is crucial to making the membership in the ICC truly global and universal. In order for the ICC to succeed, a growing majority of the world's nations must support the Court and the Rome Statute and actively cooperate in areas such as providing evidence, surrendering indicted individuals and holding national trials. The Rome Statute entered into force after achieving 60 ratifications in July 2002, decades earlier than predicted. Now, only a few years later, the number of ratifications has risen from 66 to 105. The 105th ratification by Japan in July 2007 represented an important milestone in advancing towards universal ratification of the Rome Statute.

For most nations, the key challenge in convincing governments to consider ratification is educational. The CICC plays an important role in terms of providing accurate and updated information about international justice and the ICC. The CICC also assists countries in addressing any possible constitutional and legislative obstacles to ratification, in addition to actively engaging in efforts to stimulate and generate the necessary political will for countries to become State Parties to the Court.

The Coalition has redoubled its ratification efforts in regions of the world, such as Asia and the Middle East, which are underrepresented at the ICC. Political changes in recent years have indicated a new openness in some previously 'ICC-hesitant' countries. Out of 139 signatories to the Rome Statute, 100 have

subsequently ratified the Rome Statute, while an additional 39 countries have not yet ratified. The CICC's

2.8 (e) The Jurisdiction of the International Criminal Court

The International Criminal Court's jurisdiction extends to crimes that were committed after 1 July 2002, when the Rome Statute entered into force.²²

The international Criminal Court's jurisdiction is provided for under Article 5 (1) of the Rome Statute. It states as follows:

“The jurisdiction of the court shall be limited to the most serious crimes of concern to the international community as a whole. The court has jurisdiction in accordance with this statute with respect to the following crimes:

- (a) The crime of genocide,
- (b) Crimes against humanity,
- (c) War crimes,
- (d) The crime of aggression.

Paragraph 2 provides that the court shall exercise jurisdiction over the crime of aggression once a provision is adopted in accordance with articles 121 and 123 defining the crime and setting out the conditions under which the court shall exercise jurisdiction with respect to this crime. Such a provision shall be consistent with the relevant provisions of the Charter of the United Nations.

For specific crimes see articles 16, 17, 18 and 20 (a) – (d).

2.8 (f) Applicable Principles of Law

The general principles of criminal law, which are applicable to the court are provided for under part 3, that is from articles 22 – 25. These include the following:

ratification campaign strongly encourages these signatory states to continue their commitment to international justice and join the Court. Furthermore, several non-signatory states have declared their interest in ratifying the Rome Statute. <http://www.iccnw.org/?mod=romeratification>
2/9/2009

²² See article by Rammy Park, United Nations Chronicles.

A person shall not be criminally responsible under the statute, unless the conduct in question constituted a crime, at the time the act takes place, a crime within the jurisdiction of the court;

A person convicted by the court should only be punished in accordance with the statute;

No person shall be criminally responsible for under the statute for conduct, prior to the entry into force of the statute, that is 1st July 2002.

2.8 (g) The Organs of the Court

The organs of the court are provided for under article 35, which states as follows:

- (a) The Presidency
- (b) An Appeals Division, which comprises the Trial Division and a Pre Trial Division,
- (c) Office of the Prosecutor; and
- (d) The Registry.

2.8 (h) The Judges of the Court

The court comprises 18 judges of whom 7 are female. Africa has 3 representatives, all of whom are women. These judges were inaugurated at the

Dutch Parliament on 12 March 2003.²³ For a full list refer to the website of the court.²⁴

²³ See Rammy Park *supra*.

²⁴ LIST A judges appointed for 9 years: CLARK, Maureen Harding, from Ireland, Female; DIARRA, Fatoumata Demble, from Mali; FULFORD, Adrian, from UK, Male; HUDSON-PHILIPS, Karl T from Trinidad and Tobago, Male; JORDA, Claude from France, Male, ODIO BENITO, Elizabeth from Costa Rica, female; PIKIS, Gheorghios M, from Cyprus, male; SLADE, Tuiloma Neroi, from Samoa, male; SONG, Sang-hyun, from the Republic of Korea, male; STEINER, Sylvia H.de Figueiredo, from Brazil, female.

LIST B:BLATTMANN, Rene from Bolivia, Male (6) years; KAUL, Hans-Peter from Germany, male, 3 years; KIRSCH, Phillipe, Canada, male (6) years; KOURULA, Erkki from Finland, male, (3) years; KUENYEHIA, Akua from Ghana, female (3) years; PILLAY, Navanetham, from South Africa, female, (6) years, POLITI, Mauro from Italy, male, (6) years; USACKA, Anita, from Latvia, female, (3) years. For further reading on the Court see: Christopher Keith Hall: The Role of the International Criminal Court in

The establishment of an international Criminal Court has been characterized as the missing link in the international legal system. The court will deal with individuals. This in a way is viewed as an enforcement mechanism, to punish those responsible for acts of genocide and gross violations of human rights, which have hitherto been unpunished. War crimes and crimes against humanity have been perpetrated in many places of the world, for example, Cambodia in the 1970's where an estimated 2 million people were killed by Khmer Rouge. In armed conflicts in Mozambique, Liberia, El Salvador and other countries, lives have been lost. Massacre of civilians have taken place in Algeria and the Great Lakes region of Africa.

2.8 (i) Developments Involving Ugandans

On or about 29th January 2004, the International Criminal Court Prosecutor **Luis Moreno Ocampo** announced that there was sufficient evidence to start inquiry into the grave human rights violations committed by the **lord's** Resistance Army. This would target **Joseph Kony** himself and his commanders. The problem though is that some of those commanders are not under Kony's command voluntarily.²⁵ There is also a pertinent question as to whether or not the Government of Uganda also would consider taking the Sudanese Government to the International Criminal Court for having armed, trained and sheltered the lord's resistance army.²⁶ It would be interesting to see who among our people in Uganda and even Africa will be brought prosecuted before the International Criminal Court. I think your guess is as good as mine on this issue.

2.9 The Secretariat.

Prosecuting Genocide, other crimes Against Humanity and Serious Violations of Humanitarian Law, in
Gudmundur Alfredsson, Jonas Grimheden, Betram G.Ramcharan and Alfred de Zayas: International
Human Rights Monitoring Mechanism, Essays in honour of Jakob Th. Moller,
The Raul Wallenberg Institute Human Rights Library, Volume 7, Martinus
Nijhoff Publishes, The Hague/Boston/London, pp457
– 467.

²⁵ See Sunday Vision, February 1, 2004, p 2 column 3.

²⁶ See also views of Carlos Rodriguez, in The New Vision, Wednesday February 4, 2004, p.20 and 21 column 2.

Article 97 of the Charter of the United Nations provides that the Secretariat shall comprise a Secretary General and such staff at the organization may require. The Secretary General shall be appointed by the General Assembly upon recommendation of the Security Council. The Secretary General is the Chief Administrative Officer of the United Nations.

According to Article 98 the Secretary General shall act in that capacity in all meetings of the General Assembly, of the Security Council, of the Economic and

Social Council, and of the Trusteeship Council and shall perform such other functions as are entrusted to him by these organs. The Secretary General shall make an annual report to the General Assembly on the work of the organization.

The Secretary General is mandated to bring to the attention of the Security Council, any matter, which in his opinion may threaten the maintenance of international peace and security. (see article 99).

The Secretary General is independent and does not receive instructions from any government or from any external authority to the organization. In executing the duties of his office, the Secretary General together with his staff are required to reflect their independence. (see article 100)

Article 101 paragraphs 1 – 2 provide for the appointment of the Secretariat and their assignment to the ECOSOC, and Trusteeship Council and other organs of the United Nations.

Paragraph 3 provides that paramount consideration in the employment of the staff and in determination of conditions of service, shall be the necessity of securing the highest standards of efficiency, competence, and integrity. Due regard shall be paid to the importance of recruiting staff on as a wide geographical basis as possible. (Are the people employed by the United Nations system the best or are there other considerations – eg old boy old girl net work, consideration of issues such as family or close ties with those who worked in diplomatic missions abroad?)

The duties executed by the Secretariat are varied and range from administering peacekeeping operations to mediating international disputes, from surveying economic and social trends and problems, to preparing studies on human rights and sustainable development. The Secretariat also provides information to the world's communications media about the activities of the United Nations. It also organizes international conferences on issues of global concern and interprets speeches as well as translating documents into official languages of the United Nations

The Secretariat has a staff complement of 8,900 personnel, who are recruited from 170 countries.

2.9.1 The United Nations' Role in Human Rights Standard Setting

As noted above one of the purposes of the United Nations is to promote respect for equal rights and respect for human rights and fundamental freedoms for all people. In order to do this the United Nations has deliberately developed a system of standard setting in the area of human rights. The very first effort by the United Nations in standard setting culminated into the Universal Declaration of Human Rights in 1948. We will later look at the UDHR in more details later.

In pursuance of standard setting the United Nations works through studies, sub-commissions and working groups. For example following the subcommission's study, which was undertaken by **Francesco Caportorti**, on the **Rights of Persons Belonging to Minorities**, a working group was established by the United Nations Commission on Human Rights, after Yugoslavia's efforts to bring this issue to the world's attention in 1978. The working group worked for more than 10 years and its work culminated into a **Declaration on the Rights of Persons Belonging to National or Ethnic, Religious or Linguistic Minorities**. The Declaration was adopted by the United Nations General Assembly in 1992.¹⁹

The United Nations has been instrumental in formulating guidelines or codes of conduct, which prescribe the minimum required standards in a variety of situations so as to guarantee the enjoyment of human rights. There are many examples of these, but a few will suffice: **The Standard Minimum Rules for the Treatment of Prisoners**,²⁰ adopted by the First United Nations Congress on the Prevention of Crime and Treatment of Offenders, held at Geneva in 1955 and approved by the Economic and Social Council by its resolution 663 C (XXXIV) of 31 July 1957 and of 13 May 1977. The document was approved by the General Assembly by way of resolution on 1 December 1985.

Another set of international standards is **The Beijing Rules – The Treatment of Juveniles**. The Codes of Conduct in various sectors are also facilitated by the United Nations. For example **The Code of Conduct for Law Enforcement Officials**, and also **the United Nations Basic Principles on the Use of Force**

¹⁹ See General Assembly Resolution 47/135 adopted on 18 December 1992.

²⁰ These and other standards may be accessed in United Nations: Human Rights, A compilation of International Instruments, Volume 1 (First Part) United Nations, New York and Geneva, 1994.

and Fire Arms, and The Basic Principles on the Independence of the Judiciary.

What should be noted about these United Nations Standards is that they are not necessarily meant to be compulsory framework, but rather a moral high road reached by consensus towards good theory and practice in the relevant area.²¹

2.9.2 The Universal Declaration of Human Rights (UDHR) 1948:

The first set of human rights and fundamental freedoms by the UN was the UDHR, a declaration of the UN General Assembly, adopted in Paris, France on 10th December 1948. At the point in time the UN had only 56 members. Of these 48 voted in favour of the declaration, without any member voting against it. Only 8 members abstained. These are Byelorussia, Czechoslovakia, Poland, Saudi Arabia, South Africa, Ukraine, the USSR and Yugoslavia.

According to Bailey³⁰, the UDHR is regarded as the single most important document created in the 20th Century and has come to be regarded as the world's standard for human rights. The UDHR draws life preserving messages from the past and is viewed as a foundation for building a world in which all human beings in the future, look forward to living in dignity and peace.

The UDHR was proclaimed after the Second World War, when humanity witnessed the cruelty and inhumanity inflicted on the Jews in Europe, and the prisoners of war, in detention in Europe and Asia.

The initial steps towards drafting an international bill of rights were taken in April 1946, when Mrs. Eleanor Roosevelt, widow of President Franklin Roosevelt of the USA, was appointed to chair an interim group of 9 members. Later, that interim group culminated into a new Commission of Human Rights. The said Commission had 18 members, and was also chaired by Mrs. Eleanor Roosevelt. The Commission met for the first time in January 1947.

²¹ See J.J. Noeth SC ON, A Paper presented during....., Lesotho Sun Hotel, Maseru, ³⁰ See Peter Bailey, OBE, AM : The Creation of the Universal Declaration of Human Rights, www.universalrights.net/main/creation.htm See also Kim Gleeson: World wide influence of the Universal Declaration of Human Rights and the international Bill of Rights on the same web page.

Due to the polarization caused by ideological difference and the political orientation of the time, the Commission decided to develop a declaration rather than a treaty, which is binding in international law. A declaration on the other hand is a statement of importance and has high moral and political significance, and is more than a recommendation.

The Commission decided that the declaration should contain both the civil and political rights and the economic and social rights. The Commission formulated the declaration and called it the Universal Declaration of Human Rights. This meant that it was to be a standard for all people, everywhere – whether they are male or female, black or white, capitalist or communist, victor or vanquished, rich or poor, for members of a majority or a minority in society. This is reflected in the preamble.

The core substantive provisions of the declaration are found in 3 articles, namely:

- Article 3, which guarantees every human being the right to life, liberty, and security of persons. The foregoing are civil and political rights.
- Article 22, which provides for the right to social security; and
- Article 27, which provides for the right to freely participate in the cultural life, to enjoy arts and share in scientific advancement and its benefits, and the right to protection of the moral and material interests and freedoms set forth in the declaration.

The rights in Article 22 and 27 may be characterized as economic, social and cultural rights.

2.9.3 The Significance of the Universal Declaration of Human Rights:

The UDHR has come to be accepted as an influential statement of standards world-wide. Various constitutions of the world, including Uganda's have been inspired by the same, and many others constitutions make reference to it at least in the preamble. Courts too, in diverse nations refer to the provisions of the Universal Declaration of Human Rights. The UDHR has therefore become part of the fabric of the UN.

The UDHR is referred to in the UN General Assembly resolutions and debates, eg in relation to the Declaration on the Granting of Independence and Colonial Countries and People's in 1960.

The UDHR was also referred to at the Human Rights Conference in Teheran, Iran in 1978, by representatives of 84 nations, as a common understanding of the inalienable rights of all peoples and constitutes an obligation for the members of the international community. The Vienna Declaration and Programme of Action 1993 also makes reference to the Universal Declaration of Human Rights.

Most, if not all the provisions of the UDHR have almost certainly become part of international customary law. There are many countries of the world, which have ratified the ICCPR and ICESCR. The rights recognized in these twin covenants are stated and provided for in the Universal Declaration of Human Rights, which though not a legally binding treaty, ratified by states, it has become part of international customary law.

In conclusion it is submitted that the promotion and protection of human rights today would not be what it is without this important instrument, the Universal Declaration of Human Rights.

2.9 The United Nations Human Rights System

The United Nations Human Rights system comprises a two track approach, namely the Charter based bodies and the Treaty based bodies.

The Charter based organs derive their mandate from the United Nations Charter. Examples of the Charter based bodies include: the General Assembly, the Economic and Social Council, and the Commission on Human Rights. Also included in this category are those bodies, which have been authorised by the above mentioned bodies, such as the Sub-commission on the Promotion and Protection of Human Rights, and the Commission on the status of Women.

The Treaty based bodies include the Human Rights Committee, formed under the ICCPR. We will see more about this body later.

2.11 The Commission on Human Rights:

The initial mandate of the Human Rights Commission was to submit proposals and recommendations to the ECOSOC on the following:

1. An international bill of human rights.
2. International declarations or conventions on civil liberties, the status of women, freedom of information and similar matters.
3. The protection of minorities.
4. The prevention of discrimination on grounds of race, sex, language or religion.
5. Any matter concerning human rights.

A sixth function was added in 1979 that is to assist ECOSOC in the coordination of activities concerning human rights in the United Nations system²².

Since its first meeting in 1947, the Commission has led international initiatives to define, promote and protect human rights and fundamental freedoms. Its main achievements include the initial drafting of the Universal Declaration of Human Rights, the International Covenant on Economic Social and Cultural Rights (ICESCR) and the International Covenant on Civil and Political Rights (ICCPR) 1966, and the Optional Protocols³². These instruments are sometimes referred to as **the International Bill of Rights**.

The Human Rights Commission had a **Sub-commission on Prevention of Discrimination and Protection of Minorities** until 1999. The Subcommission was changed by ECOSOC to the **Sub-commission on Promotion and**

²² See ECOSOC Resolution 1979/36, which was approved by General Assembly Resolution 34/25. ³²

For details see: Bhagwati Mukerjee In Gudmundur Alfredsson et al:
International Human Rights Monitoring Mechanisms – Essays in Honour of Jakob Th. Moller, Martinus
Nijhoff Publishers 2001, p 217.

Protection of Human Rights. This Sub-commission is serviced by 26 experts, who act in their individual capacity.

The United Nations Economic and Social Council (ECOSOC), established the Human Rights Commission, on 16th February 1946, in terms of Article 68 of the United Nations Charter²³. The above-mentioned Article authorizes ECOSOC to set up Commission in the Economic and Social fields, and for the protection of human rights

2.11 The Office of The High Commissioner On Human Rights

Although the United Nations Commission on Human Rights was set up way back in 1946, the Office of the United Nations High Commissioner on Human Rights was created by the General Assembly Resolution 48/141 of December 1993. The office of the High Commissioner is located in Geneva, with a liaison office in New York

The first High commissioner was Mr Ayala Laso, followed by the late Sergio Vierra de Mello, a Brazilian national, who took over from Mrs Mary Robinson, a former Irish President, on 12th September 2002. Mr Segio Vierra de Mello was killed in Iraq in....(August 2003???) The incumbent is Ms Bertie Ramcharan???

According to the above mentioned resolution, the High Commissioner must be a person of high moral standing and personal integrity, and shall possess expertise including in the field of human rights, and the general knowledge and understanding of diverse cultures necessary for impartial, objective, non selective and effective performance of the duties of the High Commissioner.

He/she is nominated by the Secretary General of the United Nations, and appointed by the General Assembly, with due regard to geographical rotation, and a fixed term of 4 years. He/she is at the rank of Under Secretary General of the United Nations.

²³ See ECOSOC Resolution 5 (1).

The High commissioner functions within the framework of the United Nations Charter, the Universal Declaration of Human Rights, other international human rights instruments and international law including the obligations within this framework, to respect the sovereignty, territorial integrity and domestic jurisdiction of states and to promote the universal respect for and observance of all human rights.

She/he must be guided by the recognition that all human rights- civil – cultural – economic – political and social- are universal, indivisible, interdependent and interrelated and that, while the significance of national and regional particularities and various historical, cultural and religious backgrounds must be borne in mind, it is the duty of states to, regardless of their political, economic and cultural systems, to promote and protect human rights and fundamental freedoms.

The High Commissioner is the United Nations official with principal responsibility for United Nations human rights activities under the direction and authority of the Secretary General. She/he operates within the framework of the over all competence, authority and decisions of the General Assembly, the Economic Social and Cultural Council, and the Commission on Human Rights.

The specific functions of the High Commissioner are as follows:

- (a) To promote and protect the effective enjoyment by all of all civil, cultural, economic, political and social rights
- (b) To carry out the tasks assigned him/her by the competent bodies of the United Nations system in the field of human rights and to make recommendations to them with a view to improving the promotion and protection of human rights;
- (c) To promote and protect the realization of the right to development and to enhance support from the relevant bodies in the field of the United Nations system for this purpose;
- (d) To provide through the Centre for Human Rights, of the Secretariat and other appropriate institutions, advisory services and technical and financial assistance, at the request of the state concerned

and, where appropriate, the regional human rights organizations, with a view to supporting actions and programmes in the field of human rights;

- (e) To coordinate the relevant United Nations education and public information programmes in the field of human rights;
- (f) To play an active role in removing the current obstacles and in meeting the challenges of the full realization of all human rights and in preventing the continuation of human rights violations through out the world, as reflected in the Vienna Declaration and Programme of Action;
- (g) To engage in a dialogue with all governments in the implementation of his/her mandate with a view to securing respect for all human rights;
- (h) To enhance international cooperation for the promotion and protection of all human rights;
- (i) To coordinate the human rights promotion and protection activities throughout the United Nations system;
- (j) To rationalize, adopt, strengthen and streamline the United Nations machinery in the field of human rights, with a view to improving its efficiency and effectiveness;
- (k) To carry out over all supervision of the Centre for Human Rights (now Office of High Commissioner for Human Rights)

The High Commissioner reports annually on his/her activities, in accordance with his/her mandate to the Commission on Human Rights, through ECOSOC to the General Assembly.

2.12 The Human Rights Committee

In terms of Article 28 of the ICCPR, the states parties established the Human Rights Committee on 20th September 1976 and elected 18 independent experts as members, whose term of office commenced on 1st January 1977. Its first session was held in New York at the United Nations Headquarters in the Spring of 1977. Since then it has held three weeks plenary sessions per year, each preceded by a one week working group session. The Summer session takes place at the United Nations Geneva office.

The main responsibilities of the Human Rights Committee are:

The consideration of reports submitted by states parties under article 40 of the Covenant.

The formulation of general comments under article 40 (4) of the ICCPR, that is clarifying or explaining the contents of the articles of the Covenant in order to assist the states parties to fulfill their reporting obligations.

Examining communications from individuals alleging violations of any rights set forth in the Covenant as provided for in the Optional Protocol thereto.

Some authors are of the view that the future of the Human Rights Committee should not lie in examination of state party reports, but rather in individual communication.²⁴

In terms of Article 28 of the ICCPR, the states parties established the Human Rights Committee on 20th September 1976 and elected 18 independent experts as members, whose term of office commenced on 1st January 1977. Its first session was held in New York, at the UN Headquarters, in the spring of 1977. Since then it has held 3 (three) week plenary sessions per year, each preceded by a one week working group session. The summer session takes place at the UN Geneva office.

The Human Rights Committee forms part of the complex of universal bodies both under the UN Charter and treaty organs. The Human Rights Committee's work in a way is related to the work of the United Nations Human Rights Commission.

2.13 The Human Rights Commission and Human Rights Committee:

²⁴ See Alfred de Zaya.....

A Comparison and Contrast

The Human Rights Committee and Human Rights Commission are very important bodies as far as human rights promotion and protection is concerned. As noted above, their work is interrelated. However, it is important to note that the Human Rights Commission, which is Charter based, is composed of 53 states. The Commission meets each year in regular sessions, in March and April for six weeks in Geneva. The Human Rights Committee, which is Treaty based, alternates between New York (March – April) and Geneva June – July.

The Human Rights Commission was instituted on the 16th February 1946, while the Human Rights Committee came into existence on the 20th September 197, under the auspices of the International Covenant on Civil and Political Rights 1966.

Over 3000 delegates from member and observer states, and from nongovernmental organizations participate in the Human Rights Commission, while there are fewer representatives of human rights Non Governmental organisations, which have observer status in the proceedings of the Human Rights Committee..

The members of the Human Rights Commission are representatives of their governments.²⁵ The Human Rights Committee comprises 18 individual experts, who are knowledgeable on human rights issues. They do not represent their countries.

The Economic and Social Council (**ECOSOC**) **Resolution 1235**²⁶ and **1503**²⁷ (XL VIII) apply to the Human Rights Commission and not the Committee.

²⁵ It should be remembered that the members of the Sub Commission on the promotion and Protection of Human Rights. It was until 1999 known as the Sub Commission on the Prevention of Discrimination and Protection of Minorities. It is composed of 26 experts, who act in their individual capacity.

²⁶ This resolution empowers the Commission to consider any source containing information about gross violation of human rights and to initiate a thorough study of the situation if that information reveals a consistent pattern of violation of human rights.

²⁷ Resolution 1503 provides for dealing with communications relating to violations of human rights and fundamental freedoms.

Resolution 1235 empowers the Human Rights Commission to consider any source containing information about gross violations of human rights and to initiate a thorough study of the situation if that information reveals a consistent pattern of violation of human rights. Resolution 1503 (XLVIII) provides for the procedure for dealing with communications relating to violations of human rights and fundamental freedoms.

The Human Rights Commission does not handle state reports on implementation of human rights treaties. This is undertaken by the Human Rights Committee as provided for under article 40 (1) of the ICCPR. These state reports, together with individual communication provided for under the **Optional Protocol**, are handled by the Human Rights Committee.

The Human Rights Commission's procedures and mechanisms are mandated to examine, monitor and publicly report either on human rights situations in specific countries or territories through what is known as country mechanisms or mandates, or on major phenomena of human rights violations world wide via what is called thematic mechanisms or mandates. These procedures are sometimes referred to as the special procedures of the Commission on Human Rights.

The Human Rights Committee's mandate is narrower compared to the Commission's mandate

In the recent past the Commission under ECOSOC resolution 1990/48 of 25th May 1990, was mandated to deal with acute human rights situations in the most expeditious way. As a result the following special sessions were held by the Commission in Geneva:

- The situation of human rights in the territories of former Yugoslavia 13 - 14 August 1992.
- The situation of human rights in the territories of former Yugoslavia, 30th November - 1 December 1992.
- The situation of human rights in Rwanda 24 -25 May 1994
- The situation in East Timor, 23 - 27 September 1999
- Grave and massive violations of human rights of the Palestinian people by Israel 17 - 19 October 2000.

1.14 Other Treaty Bodies Dealing with Human Rights Issues

There are other treaty based bodies under the United Nations system, which are charged with the responsibility of supervising implementation of human rights treaties. They are referred to as treaty based because they are established under the relevant treaties or conventions dealing with human rights. These include: The Committee Against Torture, The Committee on Economic, Social and Cultural Rights, The Committee on the Elimination of All forms of Discrimination Against Women, The Committee on the Elimination of All Forms of Racial Discrimination, The Committee on the Rights of the Child.

2.14.1 The Committee Against Torture

The Committee was established in terms of article 17 of the Convention Against Torture and Other Cruel Inhuman and Degrading Treatment or Punishment.

The purpose of the Committee is to supervise implementation of the Convention Against Torture.

The Committee comprises 10 experts of high moral standing and recognized competence in the field of human rights. They serve in their individual capacity. The experts are elected by states parties for a term of 4 years. They are eligible for re-election if re-nominated. States parties are responsible for the expenses of the Committee, while they perform the duties of the Committee. The Committee meets in two sessions each year in Geneva.

The main working documents of the Committee are issued under the series symbol CAT/C/-, while the summary records of meetings are issued under series symbol CAT/C/SR -, with a number at the end.

Under Article 19 of the Convention, states parties are required to submit to the Committee through the Secretary General of the United Nations an initial report on the measures taken to give effect to the undertakings under the Convention. This should be one year after entry into force for the states party concerned and

thereafter every 4 years. A list of these reports may be accessed in the UN-I-QUE data base.

2.14.2 The Committee on Economic, Social and Cultural Rights

The Committee was established by ECOSOC resolution 1985/17. Its main function is to supervise implementation of the International Covenant on Economic, Social and Cultural Rights. Its working documents are issued under the series symbol E/C.12/--, while the summary records are documented under the series E/C/--SR. States parties are enjoined by ECOSOC Resolution 1988/4 to submit an initial report on the measures adopted and progress made in implementing the rights contained in the Covenant, within two years of entry into force for the states party concerned and thereafter every 5 years. Reports may be accessed in the UN-I-QUE data- base.

2.14.3 The Committee on the Elimination of All Discrimination Against Women

The Committee is provided for under article 17 of the Convention on the Elimination of All Discrimination Against Women.

The Committee is the supervisory organ of the Convention. It makes sure that states parties to the convention implement the obligations contained there in.

The Committee comprises 23 experts of high moral standing and competence covered by the Convention. The experts are elected by states parties from among their nationals and they serve in their personal capacity. Equitable geographical distribution is considered as well as the different forms of civilizations, including the principle legal systems. The members are elected for a term of 4 years. Emoluments of this Committee are met by the United Nations.

The main working documents are issued under the series symbol CEDAW and the current status of ratification is posted on the website for the Division for the Advancement of Women (DAW).

The Committee meets in two sessions each year in New York. The summary record of meetings are issued under the symbol CEDAW/C/SR.

2.14.4 The Committee on the Elimination of All Forms of Racial Discrimination

The Committee was established pursuant to article 8 of the International Covenant on the Elimination of All Forms of Discrimination.

The purpose of the Committee is to supervise the implementation of the Convention. The Committee meets in two sessions each year in Geneva.

The Committee consists of 18 experts, of high moral standing and acknowledged impartiality elected by states parties, from among their nationals. These experts serve in their personal capacity. Consideration is given to equitable geographical distribution and representation of the different forms of civilization as well as the principal legal systems. Members of the Committee are elected for 4 years. States parties are responsible for the expenses of the members of the Committee, while they perform their duties.

States parties to the Convention are required to submit to the Committee through the Secretary General of the United Nations, a report on the legislative, judicial and administrative measures, which they have adopted which give effect to the provisions of the Convention, within 1 year after the Convention enters into force in the state parties jurisdiction. They are there after required to furnish a report every 2 years.

The working documents of the Committee are issued under the series symbol CERD/C. The summary records of meetings are issued under the series symbol CERD/C/SR.

2.14.5 The Committee on the Rights of the Child

The Committee on the Rights of the Child was issued pursuant to article 43 of the Convention on the Rights of the Child. Its main purpose is to supervise the Convention on the Rights of the Child.

The Committee comprises 10 experts of high moral standing and recognized competence in the area of the Convention. The members are elected by states parties from their nationals, and serve in their personal capacity. Equitable geographical distribution and the principal legal systems are factor taken into

considerations when members are elected. The members are elected for a term of 4 years. The Committee meets in 3 sessions each year in Geneva

The parties to the Convention are required in terms of article 44 to submit an initial report on the measures adopted, which give effect to the rights recognized under the covenant and to document progress made in the enjoyment of those rights within 2 years of the Convention's entry into force for the states party concerned, and thereafter every 5 years.

The working documents are issued under the series symbol CRC/C/-, while the summary records are issued under the series symbol CRC/C/SR. For details on reports see UN-I-QUE data base.

2.15 Specialised Agencies of the United Nations

2.16.1 International Labour Organisation (Establishment)

The International Labour organization, whose office is located in Geneva, Switzerland, was founded in 1919, by the **Treaty of Versailles**. It is therefore considered as the first organization to be accorded the status of the specialized agency of the United Nations, under an agreement with ECOSOC in 1945.

2.16.1 (a) The Structure of ILO

This organization has a peculiar structure, when compared with the rest of the other international organizations. Although it is an inter-governmental organization, its decision-making bodies are tripartite, which comprises representatives of workers and employers as well as government.

Each member state is required to send 2 representatives to the annual international labour conference. **The Most Representative Organization of Employers and Workers** also send one representative each. See article 3 of the ILO Constitution. This means that in the governing body of the International Labour Office, governments have 50 percent of the votes, employers 25 percent, and workers another 25 percent. This arrangement makes ILO the only inter-

governmental body in which non-governmental organizations have a significant role to play in decision-making.

2.16.1 (b) The International Labour Standards and Human Rights Issues

The motivating factor behind the creation of the International Labour Organisation was the need to adopt international standards and to improve the situation of workers. To this end ILO adopts conventions binding on those countries, which ratify them. In addition to this ILO makes recommendations, which have the force of declarations and provide guidelines on the best practice as far as labour and related matters are concerned. Since it came into existence in 1919, ILO had as of the year 2000 adopted 183 conventions, which have been ratified by very many states. ILO has also contributed 190 recommendations.

As far as ILO's guiding principle expressed in its constitution is concerned, lasting universal peace can only be established if it is based on **social justice**.²⁸ It is for this reason that ILO seeks to improve the conditions of workers.

Guided by the same principle, ILO in the **Declaration of Philadelphia** took steps to advance human rights by proclaiming that:

to in equal “All human beings, irrespective of race, creed or sex, have the right to pursue their material well being and the spiritual development in conditions of freedom and dignity of economic security and opportunity”.

Following this declaration the ILO was in the next 12 years involved in a series of standard setting exercise. These standards formed a basis for the labour related provisions in two human rights covenants, namely the International Covenant on Civil and Political Rights and the International Covenant on Economic, Social and Cultural Rights of 1966.

What the ILO considers as its fundamental human rights standards are those that cover 4 areas namely: Freedom of Association and Protection of the right to organize, Freedom from Forced Labour, Child Labour, and Discrimination

²⁸ See the Preamble to the ILO Constitution.

There are 8 conventions which embody what ILO calls the **Core Principles**.

These are:

1. Freedom of Association and the Right to Organise, 1948 (No 87)
2. Right to Organise and Collective Bargaining, 1949, (No 98)
3. Forced Labour, 1930, (No.29)
4. Abolition of Forced Labour, 1957 (No 105)
5. Equal Remuneration, 1950, (No.100)
6. Discrimination (Employment and Occupation) 1958 (No 111)
7. Minimum Age, 1973 (No 138)
8. Worst Forms of Child Labour 1999, (No 182)

2.16.1 (c) Supervision of the ILO Human Rights Standards

Under article 22 of the ILO Constitution, a government is required to send periodic reports to the International Labour Office. The government is also required by article 23 (2) to send copies of the reports to the most representative organization of employers and workers in the country. The reports are examined by a **Committee of Experts on the Application of the Conventions and Recommendations**. This Committee comprises 20 independent experts drawn from all economic and social systems. The Committee makes comments on the report and the passed on to the International Labour Congress, where the report is discussed by a **Tripartite Conference Committee on the Application of Standards**. The Committee chooses certain observations for discussion and invites the concerned governments to appear before it to respond

Under article 24, the **Organization of Employers and Workers** may make a submission that a government has not taken measures to ensure the satisfactory observance of the convention, which the government has ratified.

2.17 (a) UNESCO (Establishment and Purpose)

The Constitution of the United Nations Educational, Scientific and Cultural Organisation was adopted in 1945.

The purpose of UNESCO is set out in Article 1 of the Constitution, which provides inter alia:

“To contribute to peace and security by promoting collaboration among the nations through education, science and culture in order to further universal respect for justice, for the rule of law and for the human rights and fundamental freedoms which are affirmed for the people’s of the world... by the Charter of the United Nations”.

UNESCO’s main concern in the area of human rights covers right to education, freedom of expression, and the rights relating to culture, arts and science.

Initially UNESCO was of the view that it had no power to take action on complaints made to it about violations of human rights. This changed when it adopted in 1978 a new procedure for considering such communications. The Executive Board of UNESCO made a decision, which inter alia resolved that **the Committee be designated as the Committee on Conventions and Recommendations**. It was also decided that the Committee would continue to carry out its functions with respect to the conventions and recommendations and would consider communication received by UNESCO concerning cases and questions of violations of human rights, within UNESCO’s field of competence.

2.17 (b) UNESCO’s Criteria to Accept Communication

In order for a communication to be considered admissible, such a communication must not be anonymous. It must come from a person or group of persons, who can be reasonably presumed to be victims, or from quarters having reliable knowledge of an alleged violation of human rights within the competence of UNESCO.

The Communication must be compatible with the principles of UNESCO, the Charter of the United Nations and other instruments ratified in the area of human rights.

Any communication which may be adjudged to be manifestly ill founded, offensive, based exclusively on information obtained through the mass media, presented beyond reasonable time limit and where the domestic remedies available to the victim are not exhausted, can-not be entertained by UNESCO.

The following have been observed to be within UNESCO's area of competence: the right to education, the right to share in scientific advancement and enjoy its benefits, the right to participate freely in cultural life, the right to information, including freedom of opinion and expression.

2.17 (c) UNESCO's Procedure and to Accept a Communication

UNESCO's procedure of examining cases is confidential and takes place in private meetings of **The Committee on Conventions and**

Recommendation, which is one of the permanent subsidiary bodies of the executive board. Presently it comprises 30 members. UNESCO's procedure contrasts sharply with the procedure adopted by the Treaty bodies responsible for supervising implementation of the treaties/conventions.²⁹

2.18 Food and Agricultural Organisation

The Food and Agricultural Organisation was founded in October 1945, with a mandate to raise the levels of nutrition and standard of living. It was also saddled with the responsibility to improve agricultural production and better living conditions of rural populations. FAO's constitution was amended in 1965 to include a provision on **ensuring humanity's freedom from hunger**.

FAO is the largest specialized agency of the United Nations, having 180 member nations. The European Union is a member of the organization. FAO's main field concern extends to involvement in land and water development, plant and animal production, forestry, fisheries, economic and social policy, investment, sustainable development, nutrition, food standards and commodities trade. The organization also plays a significant role in dealing with food and agricultural emergencies.

²⁹ The reports are considered in public meetings.

As far as human rights are concerned, FAO has contributed significantly to the increased awareness of the right to food. For example refer to **the Rome Declaration on World Food Security and Plan of Action**, adopted by the **World Food Summit (WFS)** in November 1996, which made many references to human rights generally and the **right to adequate food and freedom from hunger** in particular.³⁰

It is however worth pointing out that in practice FAO is more concerned with issues regarding the realization and enjoyment of the right to food than the violation of any other human rights, including the right to food. FAO feels that other for a such as the Human Rights Commission and the Office of the High Commissioner for Human Rights are better suited to look at violations.

2.19 The United Nations Development Programme (UNDP)

This is the development agency of the United Nations. Development in the context of the United Nations is wide ranging. According to Mark Malloch Brown, the UNDP Administrator, the organization concerns itself with issues covering the area of politics, security, public health, crime prevention, and environment, because these issues can no longer be handled by a single nation, hence the United Nations' endeavour to bring together governments, civil society, multinational corporations and multilateral organizations to work around particular issues of concern, and to find solutions to them. The following are the areas, where UNDP is active: democratic governance, poverty reduction, crisis prevention and recovery, energy and environment, information and communication technologies, HIV/AIDS, and processing and production of human development report.

2.19 (a) Democratic Governance

UNDP is actively involved in bringing people together in nations to build partnerships and to share ways to promote participation, accountability and effectiveness at all levels. The organization helps countries to strengthen electoral and legislative system, improve access to justice and public administration and develop a greater capacity to deliver basic services to those in most need. This

³⁰ See report of World Food Summit Part one, FAO, Rome 1997: Rome Declaration on World Food Security and World Food Summit Plan of Action.

contributes to the realization of the right to political participation and judicial rights.

2.19 (b) Poverty Reduction

UNDP is working closely with national governments to eradicate poverty, but UNDP insists on strategies based on local needs and priorities. UNDP sponsors innovative pilot projects, encourages adoption of best practices and resources, promote the role of women in development, and brings governments, civil societies and donors together and coordinate their efforts. The efforts are intended to promote and realize **the right of every one to an adequate standard of living for an individual and his/her family, including the right to food, clothing and housing and to the continuous improvement of living condition**, as set out in Article 11 of the International Covenant on Economic, Social and Cultural Rights of 1966.

2.19 (c) Crisis Prevention and Recovery

UNDP is involved in preventing crisis and natural disasters, which may blot out development and increase poverty and inequality. Therefore, UNDP through its world-wide-network shares innovative approaches to crisis prevention and early warning and conflict resolution. These efforts are intended to enhance the enjoyment and realization of **the right to development** generally.

2.19 (d) Energy and Environment

UNDP helps countries to strengthen their capacities to address environmental degradation at the national level. This issue is of a global concern and has a direct bearing on the realization of **the right to a clean environment**.

2.19 (e) Information and Communication Technology

UNDP helps countries to benefit from the best practices around the world to develop strategies, which expand access to ICT and use it in the development process. This is instrumental in the realization of **the right to development**

2.20 (f) HIV/AIDS

UNDP works with national governments to prevent the spread of HIV/AIDS and to reduce its impact UNDP advocates placing HIV/AIDS at the centre of national planning and budgets. It helps build national capacity to manage initiatives that include people and institutions not usually involved with public health. This is a deliberate effort to help countries realize the right to health.

2.21 Human Development Report

UNDP works extensively in advocating and preparing human development reports. These focus on key development issues, providing measurement tools and innovative analysis. UNDP is guided by the belief that development is ultimately a process of enlarging people's choices, not only raising national incomes. In preparing these development reports UNDP draws on a world-wide-network of leaders from the academic institutions, government and civil society. These reports are crucial for development, hence it may be said that they in a way contribute to the realization of **the right to development**. As of April 2003 420 National Development Reports had been published in 135 countries of the world.

2.22 The United Nations High Commissioner for Refugees

We will not go into details because this is adequately covered under the relevant course.

According to Chapter 1 paragraph 1 of the, The United Nations High Commissioner for Refugees, acting under the authority of the General Assembly, shall assume the function of providing international protection, under the auspices of the United Nations, to refugees who fall within the scope of the present statute and of seeking permanent solutions for the problem of refugees by assisting governments and subject to the approval of the governments concerned, private organizations to facilitate the voluntary repatriation of such refugees, or to their assimilation with new national communities.

In the exercise of his/her functions, more particularly when difficulties arise, and for instance with regard to any controversy concerning the international status

of these persons, the High Commissioner shall request the opinion of an advisory committee on refugees if it is created.

Paragraph 2 provides that the work of the High Commissioner shall be of an entirely non political character; It shall be humanitarian and social and shall relate as a rule, to groups and categories of refugees. In executing the duties of his/her office, the High Commissioner is bound to follow directives issued by the General Assembly and or ECOSOC.

In short the office of the High Commissioner of Refugees is there to ensure that the rights of the refugees are not violated and as and when this happens his/her office intervenes.

2.23 The International Covenant on Civil and Political Rights, 1966

After the declaration of the UDHR, it was evident that the UDHR did not impose sufficient binding obligations to the member states of the United Nations, but as mentioned above it was more of a moral and political instrument, meant to be a standard setting instrument. The United Nations Commission on Human Rights then proceeded to draft covenants intended to be legally binding on the members of the UN, that have ratified these covenants.

The drafting work started in 1947 and was completed in 1954. Due to political and ideological differences the covenants were only adopted by the United Nations General Assembly in 1966. It came into force on 23 March 1976.

According to **Moira Rayner**³¹, this instrument is considered as one of the most important instrument for protection of all human rights. This was further reiterated in 1998, when China adopted it.

When the state signs and ratifies the ICCPR, such a state is guaranteeing to protect all rights it covers. These rights belong to individuals within the territory of the member state, whatever their status, irrespective of their sex, race, nationality, beliefs, social or economic standing, and without distinction or discrimination.

³¹ See.....

The signatories promise to provide an effective remedy for violation of any right protected in the covenant. As the title suggests, the covenant protects civil and political rights, which include the right to life, although it allows capital punishment in some instances; the right to liberty; freedom from arbitrary arrest and detention; it guarantees humane treatment if detention or imprisonment is according to law; it provides that juveniles must not be jailed with adults; it prohibits torture, inhuman and degrading treatment; prohibits slavery or forced labour; guarantees freedom to move around and choose where to live; fair trial; the right to privacy; - family, home, at home, or correspondence; prohibits unlawful attacks on a person's reputation or honour; guarantees freedom of thought, conscience, and religion; prohibits incitement to war or racial or religious hatred; guarantees the right to peaceful assembly, which should only be restricted in interest of safety, health, or other freedoms; freedom of association, including joining trade unions; the right to marry a person of one's choice; the right to take part in public affairs including voting; the right of religious or linguistic minorities to preserve their culture; and the right to self-determination.

Due to time constraints we will not look at the scope and content of each right. It would therefore be useful for the students to look at the general comments by the United Nations Human Rights Committee and the guidelines for reporting under the ICCPR, pertaining to various rights. The jurisprudence of the European Court of Human Rights and the Inter American system are crucial in this regard. We will later briefly look at a few of these rights, but let us look at the Optional Protocols.

The Optional Protocol

The Second Optional Protocol

The International Covenant on Economic, Social and Cultural Rights

Some of the Rights Covered under ICCPR and ICESCR

The Right to Life

The right to life is very important because without this right the other right may not be realized. This has been well articulated by **Professor Sieghart** when he says

As human rights can only attach to a living human being, one might expect the right to life itself to be in some sense primary, since none of the other rights would have any value or utility without it.

He however, quickly points out that international instruments do not in fact accord it any formal primacy and that on the contrary, the International Covenant on Civil and Political Rights, European Convention on Human Rights, and the American Convention on Human Rights, all contain qualifications rendering it less than absolute and allow human rights to be deliberately terminated in certain specified cases.

Professor Sieghart further notes that the right to life stands in marked contrast to some of the other rights protected by the same instrument, for example, the freedom from torture and other ill treatment, and freedom from slavery and servitude are both absolute and subject to no exceptions of any kind. He observes that it may therefore be said that international human rights law assigns a higher value to the quality of living as a process, than to the existence of life as a state.

Before we proceed further, it is important for us to establish, when life begins. There are 2 major schools of thought.

The first one is of the view that life begins at the moment of conception, and that any tampering with the fetus should be treated as terminating life. This view is mainly subscribed to by the religious communities, particularly the **Catholic Church**. One proponent of this school is **Jan Lagman**, who says

The development of a human being begins with fertilization, a process by which two highly specialized cells, the spermatozoon from the male and the oocyte from the

female unite to give rise to to a new organism, the zygote³²

The second school of thought is of the view that life begins at least 6 or 8 weeks after conception. According to Silver Lee, a number of specialists working in the field of human reproduction have suggested that we stop using the word embryo to describe the developing entity that exists for the first two weeks after fertilization. He suggests that there is a need to adopt the word pre embryo. He further notes that the term pre embryo has been embraced wholeheartedly, by some people for reasons that are political and not scientific. He further observes that the term is used to provide an illusion that there is something profoundly different between what we non medical biologists call a six day old embryo and what we and every one else call a sixteen day old embryo.

That the term embryo is useful in a political arena, where decisions are made about whether to allow early embryo now called pre embryo experimentation as well as in the confines of a doctors office, where it can be used to allay moral fears that may arise. That the doctor may as well tell those that are concerned that they should not worry, after all, it is only pre embryos that are being manipulated or are frozen, and that they wont turn into real human embryos, until after they are put back into the body. For further information about the right to life refer to the Human Rights

Committee, General Comment 6, Article 6 (Sixteenth session, 1982).³³

The Human Rights Committee pronounced itself on the right to life in the case of Chitat Ng v Canada³⁴, where **Chitat Ng**, a British subject born in Hong Kong and a resident of the United States of America, was convicted in Canada, in 1985, for attempted theft and shooting a security guard. In 1987, USA requested his extradition to the USA in order for him to stand trial in California on 19 counts. These counts included kidnapping and 12 murders committed between 1948 and 1985. If convicted there was a possibility of the imposition of the death penalty. At the time of submission of the communication, **Chitat**

³² See Jan Langman, Medical Embryology, 3rd edition, Baltimore, Williams and Wilkins, 1975, p3. See US Catholic Bishops Pro-life Activities What is an embryo <http://www.usccb.org/bishops/embryo.htm>

³³ See Compilation of General Comments and Recommendations Adopted by Human Rights Treaty Bodies, <http://www1.unmn.edu/humanrights/gencomm/hrcom6.htm> (University of Minnesota Human Rights Library).

³⁴ Communication to the Human Rights Committee No. 469/1991.

was detained in Canada, which had abolished the death penalty in 1976, with a limited exception for certain military offences. Chitat's lawyer argued that if his client (the author of the communication) was extradited to the USA, the death penalty would be imposed on him. He further argued that this penalty was against the right to life and is cruel, degrading treatment.

The Human Rights Committee inter alia observed that Mr. **Chitat Ng** was not a victim of a violation by Canada of Article 6 of the ICCPR. However, the Committee provided guidelines to be followed in determining whether in a particular case the imposition of the capital punishment constituted what is prohibited under Article 7 of the ICCPR. The Committee will have regard to the relevant personal factors regarding the author of the communication, the specific conditions of detention on death row, and whether the proposed method of execution is particularly abhorrent. In this case it was contended that execution by gas asphyxiation is contrary to internationally accepted standards of humane treatment of article 7 of the covenant

Similarly, the European Court of Human Rights held in Soering v UK³⁵, that extradition of **Soering**, a German national wanted by a Virginia Court in the USA, for murder, would amount to breach of Article 3 of the European Convention, which prohibits torture or inhuman or degrading treatment or punishment.

The South African Constitutional Court also took a similar position in State v Makhoanyane³⁶. In this case **Makwanyane** and others, who were the appellants, had been convicted of murder and sentenced to death by the Witwatersrand Local Division of the Supreme Court. 11 judges were unanimous that the death penalty was unconstitutional, because they argued inter alia, that the death penalty infringed the right to life.

The dissenting opinion and partially dissenting opinion in the case of Open Door and Dublin Well Women v Ireland⁴⁷, also offers useful jurisprudence on the right to life of an unborn life.

³⁵ (1989 11 EHRR 439 (European Human Rights Reports))

³⁶ CCT 3 94, 1995 1 LRC 269

Freedom from Torture, Cruel and Inhuman Treatment

The ICCPR provided for this right under article 7. It says that no one shall be subjected to torture or cruel, inhuman or degrading treatment or punishment. In particular no one shall be subjected without his consent to medical or scientific experimentation. Torture is not defined in the ICCPR. We have to refer to article 1 of the Convention Against Torture, which provides that for purposes of this convention, the term torture means

“any act by which severe pain or suffering whether physical or mental is intentionally inflicted on a person for such purposes as obtaining from him or a third person information or a confession, punishing him for an act he or a third person has committed, or intimidating or coercing him or a third person or for any reason based on discrimination of any kind, when such pain or suffering is inflicted by or at the instigation of or with the consent or acquiescence of a public official or other person acting in an official capacity. It does not include pain or suffering arising only from inherent in or incidental to lawful sanctions”

Torture can not be permitted under any circumstance whatsoever. This is further attested to by the decision of the European Court of Human Rights in the case of Ireland v UK⁴⁸, where the court found that the conduct of the British Security forces in Northern Ireland constituted inhuman and degrading treatment, but there was a disagreement on whether such a conduct constituted torture.

The European Court also confirmed that existence of an objective such as obtaining of information or confession is a necessary ingredient for torture to exist, however, the dissenting opinion in the case of Ireland v UK, **Judge**

⁴⁷ 29 10 1992. This and other cases may be accessed on www.HRNI

⁴⁸ See.....

Fitzmaurice observed that the motivation for torture is irrelevant. He was of the view that torture is torture whatever its purpose, if inflicted compulsorily.

In Denmark v Greece, it was held that solitary confinement, isolation in a police cell without food, water or access to toilets, mock execution, a threat to throw the detainee out of the window, the use of insulting language, rubbing the head

of the detainee with vomit, stripping the detainee naked, or forcing the detainee to be present at the torture or inhumane treatment of relatives or friends, sometimes overcrowded detention quarters, lack of proper washing facilities, unsatisfactory dental treatment, restriction of mail.

In Selmouni v France³⁷, The European Court of Human Rights also pronounced itself on the issue of torture and ill-treatment, while in custody. In this case **Selmouni** had been arrested on suspicion of drug trafficking. While in police custody, he was assaulted with a base ball bat, forced to kneel before a young lady, forced to suck the private parts of a police man, before being urinated upon by the same police man. He was sodomised with a rubber truncheon, and threatened with burning of his feet. The court held that Selmouni had been tortured. See also Tomasi v France.

Finally, before we leave this sub-topic, it would be useful to see what the United Nations Human Rights Committee has said about torture. In the case of Sergio Euben Lopez Burgos v Uruguay³⁸, In this case.....

The Human Rights Committee in its General Comment³⁹, came up with details on the provisions of article 7 of the ICCPR. These are as follows:

11 To guarantee the effective protection of detained persons, provision should be made for the detainees to be held in places officially recognised as places of detention and for their names to be places of detention as well as for the names of the persons responsible for their detention, to be kept in registers readily available and accessible to the concerned, including relatives and friends. To the same effect, the time and place of all interrogations should be recorded, together with the names of all those present and this information should be recorded, together with names of all those present and this information should be available for purposes of judicial or administrative proceedings. Provision should also be made against incommunicado detention. In that connection, states parties should ensure that any place of detention be free from any equipment liable to be used for facilitating torture or ill-treatment. The protection of the detainees also

³⁷ 28/07/1999

³⁸ Communication No. 12/52 (6th June 1979)

³⁹ No 20, of 1992

requires that prompt and regular access be given to doctors and lawyers and under appropriate supervision when the investigations so require, to family members.

12. It is important for the discouragement of violations under article 7, that the law must prohibit the use of admissibility in judicial proceedings of statements or confessions obtained through torture or other prohibited treatment.

15. The Committee has noted that some states have granted amnesty in respect of acts of torture. Amnesties are generally incompatible with the duty of states to investigate such acts, to guarantee freedom from such acts within their jurisdictions; and to ensure that they do not occur in the future. States may not deprive individuals of the right to an effective remedy, including compensation and such full rehabilitation as may be possible.

The Right to Health

This right is protected by article 12 of the International Covenant On Economic, Social and Cultural Rights. In particular, paragraph 1 thereof provides that states parties to the present covenant recognise the right of every one to the enjoyment of the highest attainable standard of physical and mental health; while paragraph 2 states that the steps to be taken by states parties to the present covenant to achieve the full realisation of this right shall include those necessary for:

- (a) The provision for the reduction of the rate of the still birth rate and of the mortality and health development of the child;
- (b) The improvement of all aspects of environmental and industrial hygiene;
- (c) The prevention, treatment and control of epidemics, endemic, occupational and other diseases;
- (d) The creation of conditions which would assure to all medical services and medical attention in the event of sickness.

The Committee on Economic, Social and Cultural Rights has in General Comment Number 14 elaborated the right to health as follows:

Paragraph 1: Health is a fundamental human right indispensable for the exercise of other human rights. Every human being is entitled to the enjoyment of the highest attainable standard of health conducive to living a life in dignity. The realisation of the right to health may be pursued through numerous complementary approaches, such as the formulation of health policies, or implementation of health programmes developed by the World Health Organisation (WHO), or the adoption of specific legal instruments. Moreover, the right to health includes certain components which are legally enforceable.

Paragraph 3: The right to health is closely related to and depends upon the realisation of other human rights, as contained in the International Bill of Rights, including the right to food, housing, work, education, human dignity, life, non-discrimination, equality, prohibition against torture, privacy, access to information, and the freedom of Association, assembly and movement. These and other rights and freedoms address integral components of the right to health.

Paragraph 4: The right to health is not to be understood as a right to be healthy. The right to health contains both freedoms and entitlements. The freedom includes: the right to control one's health and body, including sexual and reproductive freedoms and the right to be free from interference, such as the right to be free from torture, non-consensual medical treatment and experimentation. By contrast the entitlements include: the right to a system of health protection, which provides equality of opportunity for people to enjoy the highest attainable level of health.

Paragraph 9: The notion of the highest attainable standard of health in article 12.1 takes into account both the individual's biological and social economic preconditions and a state's available resources. There are a number of aspects, which can not be addressed solely within the relationship between states and individuals; in particular good health can not be ensured by a state, nor can states provide protection against every possible cause of human ill-health. Thus genetic factors, individual susceptibility to ill health and the adoption of unhealthy or risky life styles may play an important role with respect to an individual's health. Consequently the right to health must be understood as a right to the enjoyment

of a variety of facilities, goods, services and conditions necessary for the realisation of the highest attainable standard of health.

Paragraph 10: Since the adoption of the two international covenants in 1966, the world health situation has changed dramatically and the notion of health has undergone substantial changes and has also widened in scope. More determinants to health are being taken into consideration, such as resource distribution and gender differences. A wider definition of health also takes into account such socially related concerns as violence and armed conflict. Moreover, formerly unknown diseases, such as human immunodeficiency viruses and acquired immunodeficiency viruses and Acquired Immunodeficiency Syndrome (HIV/AIDS) and others that have become more wide spread such as cancer, as well as the rapid growth of the world's population, have created new obstacles for the realisation of the right to health which need to be taken into account when interpreting article 12. There are more provisions of this General Comment.⁴⁰

The Right to Education

See p 75 hand written notes

The Third Generation of Human Rights

Why are they called third generation of human rights? This category of human rights is also referred to by some scholars as **solidarity rights**. That is because they are not vested in individuals but in collective groups of individuals called peoples. These rights are sometimes called **collective rights**. These rights include the **right to development**, the **right of self-determination**, the **right of sovereignty over natural resources**, etc.

⁴⁰ See www.cesr.org/ESCR/gencomment14.htm

Professor Seighart is of the view collective rights are expressed in a form that is difficult to reconcile with any classical theory of human rights. He argues that these collective rights are to a large extent said to attach to “peoples” rather than to “persons” or individuals. He advances 3 reasons, which may prevent collective rights from being recognized as a specific category of human rights. These are:

1. There is no generally accepted definition of what constitutes “a people”, yet clearly not every group within a state can be entitled to call itself a people and consequently claim the right of selfdetermination as a legitimate ground for seceding from the state. He further argues that there is no straightforward test to establish whether any given individual does or does not form a part of any particular people and so shares that peoples rights.⁴¹
2. It is easy to identify the state or its government and public authorities, but it is less easy to identify those obliged to respect and secure the rights of the peoples. For example – Who has the power to ensure for a people the right to dispose of its natural wealth and resources?⁵⁴
3. Abstract concepts have in the past posed grave dangers to the enjoyment by individuals of their human rights and fundamental freedoms. Some of the gross violations of human rights have been carried out in the name of some inspiring abstraction, such as the one true faith, the nation, the state, the economy, etc and that the term people may not be an exception.⁴²

⁴¹ A good example is the Nuremberg law which required that for one to be considered an Aryan, one had to produce baptismal certificates of 4 grand parents, otherwise he was excluded from the group. ⁵⁴ Such a power may be spread over states, public and national and international bodies and many individuals.

⁴² Some states have used national security and public order. For further reading on Peoples see: Nasila Rembe: The system of Protection of Human Rights Under the African Charter on Human and Peoples Rights: Problems and Prospects.

PART 111 30. REGIONAL SYSTEM⁴³

There are 3 major regional human rights systems. These are the European, the Inter American and the African System. We will not go into details because of time constraints. However, students are encouraged to read on their own. There are other regional systems such as the Asian Human Rights Commission and the Arab system. These are still in embryonic stage, and as such may not be referred to as functional systems.

As far as this course is concerned the African System is the most relevant to us in Africa, but it is relatively new. Its jurisprudence is not yet well developed hence we will start with the first two, particularly the European System, which has had the benefit of history. The Inter American System has also had a lot of experience over the years although its development is still behind that of the European System.

3.1 The European Convention on Human Rights of 1950

3.1.2 Historical Background

The Convention for the Protection of Human Rights and Fundamental Freedoms was drawn up within the Council of Europe. It was opened for signature in Rome on 4 November 1950 and entered into force in September 1953. The European Convention's starting point was the 1948 Universal Declaration of Human Rights.⁴⁴ The Europeans sought to pursue the aims of

⁴³ Refer to the reading material on this section in the part that has Reading List with Case Citation and Bibliographic Information, attached to the Course Outline. .

⁴⁴ See The preamble to this Convention states as follows: Considering the UDHR proclaimed by the General Assembly of the United Nations on 10 December 1948, Considering that this Declaration aims at securing the Universal and effective recognition and observance the rights therein declared; Considering that the aims of the Council of Europe is the achievement of greater unity between its members and that one of the

the Council of Europe through the maintenance and further realisation of human rights and fundamental freedoms. It is therefore said that the Convention was to represent the first steps for the collective enforcement of some of the rights set out in the Universal Declaration.

In addition to laying down a set of civil and political rights and freedoms, the Convention put in place a mechanism for the enforcement of the obligations entered into by Contracting States. Three institutions were entrusted with this responsibility: the European Commission of Human Rights (set up in 1954), the European Court of Human Rights (set up in 1959) and the Committee of Ministers of the Council of Europe, the latter organ being composed of the Ministers of Foreign Affairs of the member States or their representatives.

Initially, under the Convention complaints could be brought against States parties either by other Contracting States or by individual applicants (individuals, groups of individuals or non-governmental organisations). Recognition of the right of individual application was, however, optional and it could therefore be exercised only against those States which had accepted it (Protocol No. 11 to the Convention was subsequently to make its acceptance compulsory).

The complaints were first the subject of a preliminary examination by the Commission, which determined their admissibility. Where an application was declared admissible, the Commission placed itself at the parties' disposal with a view to making a friendly settlement. If no settlement was forthcoming, it drew up a report establishing the facts and expressing an opinion on the merits of the case. The report was transmitted to the Committee of Ministers.

Where the respondent State had accepted the compulsory jurisdiction of the Court, the Commission and/or any Contracting State concerned had a period of three months following the transmission of the report to the Committee of Ministers within which to bring the case before the Court for a final, binding

methods by which that aim is to be pursued is the maintenance and further realization of human rights and fundamental freedoms, reaffirming their profound belief in those fundamental freedoms, which are foundations of justice and peace in the world and are best maintained on the one hand by an effective political democracy and on the other by a common understanding and observance of

human rights upon which they depend; Being resolved, as the governments of European countries, which are like minded and have common heritage of political traditions, ideas, freedom and the rule of law, to take the first steps for the collective enforcement of certain freedoms defined in the Universal Declaration have agreed as follows: **Article 1:** The High Contracting parties shall secure to every one within their jurisdiction the rights and freedoms defined in section 1 of this Convention.

adjudication. Individuals were not entitled to bring their cases before the Court.

If a case was not referred to the Court, the Committee of Ministers decided whether there had been a violation of the Convention and, if appropriate, awarded "just satisfaction" to the victim. The Committee of Ministers also had responsibility for supervising the execution of the Court's judgments.

3.1.3 The Later Developments

Since the Convention's entry into force in 1953, thirteen Protocols have been adopted. Protocols Nos. 1, 4, 6, 7, 12 (this Protocol will enter into force when ratified by ten Contracting States) and 13 added further rights and liberties to those guaranteed by the Convention, while Protocol No. 2 conferred on the Court the power to give advisory opinions. Protocol No. 9 enabled individual applicants to bring their cases before the Court subject to ratification by the respondent State and acceptance by a screening panel. Protocol No. 11 restructured the enforcement machinery. The remaining Protocols concerned the organisation of and procedure before the institutions set up under the Convention.

Since 1980 there has been an increase in the number of cases brought before the Convention institutions. This posed operational problems. The problem was compounded by the accession of new Contracting States from 1990. The number of applications registered annually with the Commission increased from 404 in 1981 to 4,750 in 1997. By that year, the number of unregistered or provisional files opened each year in the Commission had risen to over 12,000. The Court's statistics reflected a similar story, with the number of cases referred annually rising from 7 in 1981 to 119 in 1997.

The ever increasing case-load prompted a lengthy debate on the necessity for a reform of the Convention supervisory machinery, resulting in the adoption of Protocol No. 11 to the Convention. The aim was to simplify the structure with a view to shortening the length of proceedings while strengthening the judicial character of the system by making it fully compulsory and abolishing the Committee of Ministers' adjudicative role.

Protocol No. 11, which came into force on 1 November 1998, replaced the existing, part-time Court and Commission by a single, full-time Court. For a transitional period of one year (until 31 October 1999) the Commission continued to deal with the cases which it had previously declared admissible.

During the three years which followed the entry into force of Protocol No. 11 the Court's case-load grew at an unprecedented rate. The number of applications registered rose from 5,979 in 1998 to 13,858 in 2001, an increase of approximately 130%. Concerns about the Court's capacity to deal with the growing volume of cases led to requests for additional resources and speculation about the need for further reform.

A Ministerial Conference on Human Rights, held in Rome on 3 and 4 November 2000 to mark the 50th anniversary of the opening of the Convention for signature, had initiated a process of reflection on reform of the system. In November 2002, as a follow-up to a Ministerial Declaration on "the Court of Human Rights for Europe", the Ministers' Deputies issued terms of reference to the Steering Committee for Human Rights (CDDH) to draw up a set of concrete and coherent proposals covering measures that could be implemented without delay and possible amendments to the Convention.

This regional human rights instrument, which came into existence in 1950, having been promulgated by the Council of Europe⁴⁵, came into force in 1953.

This Convention has had many Protocols, which guarantee enjoyment more rights. For example Protocol No... which came into force on 18th May 1954, provides for the right to peaceful enjoyment of possession, the right to education, the democratic right of holding free periodic elections.

⁴⁵ The Council of Europe is an International Organization. It is different from the European Council and the Council of the European Union.

Protocol No. 4, which entered into force on 2nd May 1968 introduced the liberty not to be imprisoned for failure to fulfill a contractual obligation, the right not to be expelled from a territory of a state of which one is not a national.

Protocol No. 6, which entered into force on 1 March 1985, inter-alia, provided for the abolishment of the death penalty.

Protocol No 7, which entered into force on 1 November 1988, provides for the expulsion of aliens, after the alien has been given the opportunity to give reasons against his expulsion, to have his case reviewed and the right to be represented before competent authorities, the right of those convicted of a criminal offence to have the sentence reviewed by higher tribunals, the right not to be punished twice for the same offence (Double Jeopardy), the right to enjoy equality of rights and responsibilities.

Protocol No 12, which was made on 4 November 2000, which provides for general prohibition of discrimination.

The Convention guarantees the right to life in Article 2; Freedom from torture or prohibition of torture in Article 3; Prohibition of slavery and forced labour in Article 4; The Right of Liberty and Security in Article 5; The Right to a Fair Trial in Article 6; It guarantees that punishment must be in accordance with the law in Article 7; It provides for the Right to Respect for Private and Family life in Article 8; Freedom of Thought, Conscience and Religion in Article 9; Freedom of Expression in Article 10; Freedom of Assembly and Association in Article 11; the Right to Marry in Article 12;

The Right to an Effective Remedy in Article 13; Prohibition of Discrimination in Article 14; and Derogation in Article 15.

The European Convention on Human Rights covers civil and political rights. The social and economic rights are dealt with in the European Social Charter of 1961. The Social Charter has additional Protocols of 1988, 1991, 1995, 1996 and 1999.

One of the drafters of the European Convention on Human Rights, one **Pierre-Henri-Teitgen**, explained in 1949 why economic and social rights were not included in the European Convention. He said:

It was first necessary to guarantee democracy in the European Union and then coordinate our economies, before undertaking the generalization of social democracy.⁴⁶

3.1.4 Admissibility

Every individual application is assigned to a Section, whose President designates a rapporteur. After a preliminary examination of the case, the rapporteur decides whether it should be dealt with by a three-member Committee or by a Chamber.

A Committee may decide, by unanimous vote, to declare inadmissible or strike out an application where it can do so without further examination. Individual applications which are not declared inadmissible by Committees, or which are referred directly to a Chamber by the rapporteur, and State applications are examined by a Chamber. Chambers determine both admissibility and merits, in separate decisions or where appropriate together.

Chambers may at any time relinquish jurisdiction in favour of the Grand Chamber where a case raises a serious question of interpretation of the Convention or where there is a risk of departing from existing case-law, unless one of the parties objects to such relinquishment within one month of notification of the intention to relinquish. In the event of relinquishment the procedure followed is the same as that set out below for Chambers.

The first stage of the procedure is generally written, although the Chamber may decide to hold a public hearing, in which case issues arising in relation to the merits will normally also be addressed.

Decisions on admissibility, which are taken by majority vote, must contain reasons and be made public.

3.1.5 The European Court of Human Rights

The European Court of Human Rights set up under the Convention as amended by Protocol No. 11 is composed of a number of judges equal to that of the

⁴⁶ See Stein *infra* p 794.

Contracting States. The present number is forty-four. It should be noted that there is no restriction on the number of judges of the same nationality.

Judges are elected by the Parliamentary Assembly of the Council of Europe for six years. The terms of office of one half of the judges elected at the first election expired after three years, so as to ensure that the terms of office of one half of the judges are renewed every three years.

Judges sit on the Court in their individual capacity and do not represent any State. They are precluded from engaging in any activity, which is incompatible with their independence or impartiality or with the demands of full-time office. Their terms of office expire when they reach the age of seventy.

The Plenary Court elects its President, two Vice-Presidents and two Presidents of Section for a period of three years.

3.1.6 The Divisions of the Court

Under the Rules of Court, the Court is divided into four Sections, whose composition, fixed for three years, is geographically and gender balanced and takes account of the different legal systems of the Contracting States. Two of the Sections are presided over by the Vice-Presidents of the Court; the other two Sections are presided over by the Section Presidents. Section Presidents are assisted and where necessary replaced by Section VicePresidents, elected by the Sections.

Committees of three judges are set up within each Section for twelve-month periods.

Chambers of seven members are constituted within each Section on the basis of rotation, with the Section President and the judge elected in respect of the State concerned sitting in each case. Where the latter is not a member of the Section, he or she sits as an *ex officio* member of the Chamber. The members of the Section who are not full members of the Chamber sit as substitute members.

The Grand Chamber of the Court is composed of seventeen judges, who include, as *ex officio* members, the President, Vice-Presidents and Section Presidents.

The Court provides for two procedures, by which the member states also referred to, as the High Contracting Parties, may be held accountable by the European Court of Human Rights, for any violation of the rights contained in the Convention. These procedures are discussed below:

3.1.7 The Procedure of the Court:

Any Contracting State (State application) or individual claiming to be a victim of a violation of the Convention (individual application) may lodge directly with the Court in Strasbourg an application alleging a breach by a Contracting State of one of the Convention rights. A notice for the guidance of applicants and forms for making applications may be obtained from the Registry. The Individual Petition Procedure provided for under Article 34. The other is an Inter State Procedure provided for under Article 33.

The procedure before the European Court of Human Rights is adversarial and public. Hearings, which are held only in a minority of cases, are public, unless the Chamber/Grand Chamber decides otherwise on account of exceptional circumstances. Memorials and other documents filed with the Court's Registry by the parties are, in principle, accessible to the public. Individual applicants may submit applications themselves, but legal representation is recommended, and even required for hearings or once an application has been declared admissible. The Council of Europe has set up a legal aid scheme for applicants who do not have sufficient means.

The official languages of the Court are English and French, but applications may be submitted in one of the official languages of the Contracting States. Once the application has been declared admissible, one of the Court's official languages must be used, unless the President of the Chamber/Grand Chamber authorises the continued use of the language of the application.

3.1.8 The Operation of The Court:

The operation of the Court and the entire European System underwent changes in November 1998, when Protocol No. 11 to the European Convention entered into force.

Under the old system the main stage in the examination of the a complaint was undertaken by the European Commission of Human Rights. The Commission ceased to exist in October 1999 after the merger or fusion of the old court and the Commission.⁴⁷

Prior to unification the Commission comprised an expert elected from every state party to the Convention. The findings of the Commission on whether the Convention was breached or not, was not per se' legally binding on the states parties. It was also the practice that within 3 months of the Commission's report pertaining to the case, the case could have been referred to the Court by either the Commission or by the state party concerned, but not the complainant.

Under the old system if the case did not reach the Court, the final decision was made by the Committee of Ministers. In a way the Old Court was at the mercy of the Commission or the state concerned.

3.1.9 Procedure on the Merits

Once the Chamber has decided to admit the application, it may invite the parties to submit further evidence and written observations, including any claims for "just satisfaction" by the applicant. If no hearing has taken place at the admissibility stage, it may decide to hold a hearing on the merits of the case.

The President of the Chamber may, in the interests of the proper administration of justice, invite or grant leave to any Contracting State which is not party to the proceedings, or any person concerned who is not the applicant, to submit written comments, and, in exceptional circumstances, to make representations at the hearing. A Contracting State whose national is an applicant in the case is entitled to intervene as of right.

During the procedure on the merits, negotiations aimed at securing a friendly settlement may be conducted through the Registrar. The negotiations are confidential.

3.1.10 Judgments

⁴⁷ See Stein supra p.....

Chambers decide by a majority vote. Any judge who has taken part in the consideration of the case is entitled to append to the judgment a separate opinion, either concurring or dissenting, or a bare statement of dissent.

Within three months of delivery of the judgment of a Chamber, any party may request that the case be referred to the Grand Chamber if it raises a serious question of interpretation or application or a serious issue of general importance. Such requests are examined by a Grand Chamber panel of five judges composed of the President of the Court, the Section Presidents, with the exception of the Section President who presides over the Section to which the Chamber that gave judgment belongs, and another judge selected by rotation from judges who were not members of the original Chamber.

A Chamber's judgment becomes final on expiry of the three-month period or earlier if the parties announce that they have no intention of requesting a referral or after a decision of the panel rejecting a request for referral.

If the panel accepts the request, the Grand Chamber renders its decision on the case in the form of a judgment. The Grand Chamber decides by a majority vote and its judgments are final.

All final judgments of the Court are binding on the respondent States concerned.

Responsibility for supervising the execution of judgments lies with the Committee of Ministers of the Council of Europe. The Committee of Ministers verifies whether States in respect of which a violation of the Convention is found have taken adequate remedial measures to comply with the specific or general obligations arising out of the Court's judgments.

3.1.11 Advisory opinions

The Court may, at the request of the Committee of Ministers, give advisory opinions on legal questions concerning the interpretation of the Convention and Protocols. Decisions of the Committee of Ministers to request an advisory opinion are taken by a majority vote. Advisory opinions are given by the Grand Chamber and adopted by a majority vote. Any judge may attach to the advisory opinion, a separate opinion or a bare statement of dissent.

SIKIA

3.2 The Human Rights System Under the American Convention on Human Rights

The Convention gives authority to supervise observance of the Convention to two organs. These are The Inter American Commission, which was in existence before the Convention and the Inter American Court of Human Rights, which was created by the Convention.

3.2.3 The Inter-American System:

In May 1948 an **Inter-American conference** was held in **Bogota Columbia**. This was the ninth Conference. It was at this conference that the Organization of American States (OAS) was established. At the end of this conference the OAS Charter was made and it entered into force in 1951. The OAS was preceded by the International Union of American Republics 1890.

The OAS Charter has been amended by many protocols, including the **Protocol of Buenos Aires** of 1967, the **Protocol of Cartagena de Indias** of 1985, the **Protocol of Washington** 1992, and the **Protocol of Managua** of 1993.

3.2.4 The Purposes of the OAS

The purposes of OAS are as follows:

1. To strengthen the peace and security of the continent;
2. To promote and consolidate representative democracy, with respect for the principle of nonintervention;
3. To prevent possible causes of difficulties that may arise among member states in the event of aggression;
4. To seek the solution of political, judicial and economic problems that may arise among them;
5. To promote by cooperative action, their economic, social and cultural development
6. To achieve an effective limitation of conventional weapons that will make it possible to devote the largest amount of resources to the economic and social development of the member states.⁴⁸

3.2.5 The Structure of the OAS

The OAS has four main organs. These are:

1. The General Assembly, which meets annually and in addition special sessions as and when required.
2. The meeting of Consultation of Ministers of Foreign Affairs that considers urgent matters;

⁴⁸ See Annual Report of the Inter-American Commission of Human Rights 1994 (1995) at 347.

3. The Permanent Council; and
4. The General Secretariat.

The last two are based in Washington District of Columbia.

3.2.6 The Inter American Commission on Human Rights

The Inter American Commission comprises 7 members elected in a nongovernmental capacity by the OAS Assembly, and represent all OAS member states.

The unique character of the Inter American Commission is that when the Convention entered into force in 1978, the Commission got a second role. The first one is that it still remains an organ of the OAS, which role permits it to maintain its power to promote and protect human rights in the territories of all OAS member states. The second role is that it is now an organ of the Convention, with capacity to supervise human rights issues in the territory of the parties to the Convention.

The Commission's function include

1. Promoting human rights in all OAS member states,
2. Assisting in drafting of human rights documents,
3. Advising member states of OAS,
4. Preparing country reports,
5. Mediating disputes over serious human rights problems,
6. handling individual complaints and initiating individual cases on its own motion, both with regard to states parties and states not parties to the Convention, and
7. Participating in the handling of cases and advisory opinions before the Court.

3.2.7 The Inter American Court

The Inter American Court consists of 7 judges, irrespective of the number of states that have recognized the jurisdiction of the Court. Judges however may come from countries of the OAS, which have not become parties to the Convention, e.g Judges from the United States of America. The court has both advisory opinion jurisdiction and contentious or adjudicative jurisdiction.

3.2.8 The Human Rights System Under the American Convention on Human Rights

The above-mentioned **Bogota conference** of May 1948 also adopted the American Declaration of the Rights and Duties of Man. This means that the Inter American system had a human rights declaration prior to the United Nations. (Seven months to be precise, because the UDHR was proclaimed by the U.N in December 1948.

The Rights contained in **the American Declaration of Rights and Duties of Man** are similar to those contained in the Universal Declaration of Human Rights. However, the former has 10 distinct articles setting out the duties of citizens, the duty to conduct himself in relation to others that each and every one may fully form and develop his personality; to 'aid support, educate and protect his minor children to acquire at least an elementary education', to vote in popular elections, to obey the law and other legitimate commands of the authorities, to render whatever civil and military service his country may require for its defense and preservation, to cooperate with states with respect to social security and welfare; and to pay taxes and work..⁴⁹

As of March 2000 the OAS had 35 member states of which 25 had ratified the American Convention and 20 had recognized the jurisdiction of the Court. Peru in the recent past renounced the jurisdiction of the Court.

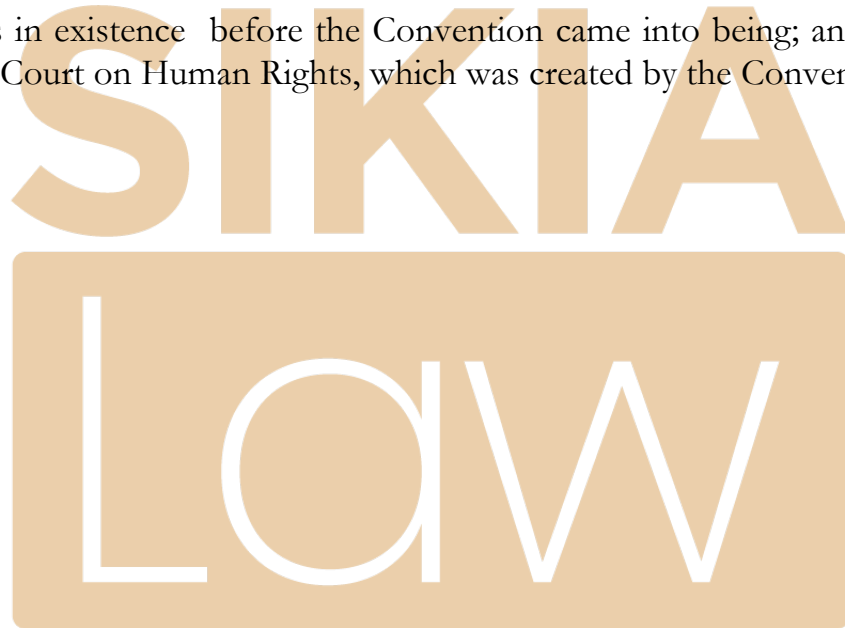
The United States of America signed the Convention in 1978, but up to date (June 2003) not ratified it.

⁴⁹ See Henry J. Steiner and Philip Alston: International Human Rights in Context, Law Politics and Morals, Second Edition, Oxford University Press, 2000, p870.

Cuba is still a member, but the government of Fidel Castro has been excluded from participating in the work of the OAS. Despite this exclusion, the OAS has continued to examine the human rights record of Cuba.

Although the institutional structures of the Inter-American system are similar to their European counterpart, the development of the InterAmerican system has followed a different course all together. While authoritarian and military governments were rare in Europe, they were not uncommon in the Latin American context in the 1980.

The Convention gives authority to supervise observance of the Convention to two organs. These are: The Inter-American Commission on Human Rights, which was in existence before the Convention came into being; and the Inter American Court on Human Rights, which was created by the Convention.



3.3 The African System.⁵⁰

The African Union (AU) formerly known as the Organization of African Unity (OAU) also came up with a regional human rights instrument. The instrument was called the African Charter on Human and People's Rights 1981.

⁵⁰ See also: Robert H.Kisanga: 'Fundamental Rights and Freedoms in Africa: The Work of the African Commission on Human and People's Rights' in Chris Maina Peter and Ibrahim Hamis Juma (editors) Fundamental Rights and Freedoms in Tanzania, Mkuki Nyota Publishers, Dar Es Salaam, Tanzania, 1998, pp. 25 – 35.

The very first discussion, which later culminated in the Charter began as early as 1961, during the African Conference on the rule of law in Lagos, Nigeria, convened by the International Commission of Jurists. The efforts were later boosted in 1963, when the then independent African states came together and in their founding Charter made reference to human rights, but their concern was the total removal of colonialism and apartheid.⁵¹

From 28 November to 8 December 1979, a Ministerial conference was convened by the O.A.U. Assembly, which met in Dakar, Senegal. It was attended by Ministers of Justice and a number of African experts. This gathering was responsible for the drafting of the African Charter on Human and People Rights, also known as the Banjul Charter. Further meetings were held in Banjul in June 1980 and January 1981 as we will see later here below.

As a result of those initiatives, the OAU as it was known at the time, passed a resolution, which called upon the Secretary General to constitute a group of experts to prepare a draft Charter. After a thorough job was done, the draft was then passed to the Ministers of Justice of the OAU. The Charter was adopted by the Heads of State and Government during an OAU summit that was held in Nairobi, Kenya. There was initially a contentious debate as to whether the Charter should be called the **Banjul Charter**, given Banjul's role as a venue where a lot of work pertaining to the drafting and preparation of the Charter took place, or the **Nairobi Charter**, because the Charter was finally adopted in Nairobi. The OAU finally decided to settle for a neutral name, hence the African Charter on Human and People's Rights.

In preparing the draft Charter the African experts were mandated to prepare a human rights instrument based on African legal philosophy, responsive to African aspirations and needs.⁵² This then meant that the Charter was to address African aspirations and needs.⁵³ The African jurists ensured that the instrument

⁵¹ Gittelman, R. 'The African Charter on Human and People's Rights Analysis', 22 Virginian Journal of International Law (1982) Vol. 4, p670.

⁵² Gittelman, R. 'Introductory Note: Organization of African Unity: The Banjul Charter on Human and People's Rights,' International Legal Material (ILM) 21 (1982) 58.

⁵³ Gittelman, R. 'Introductory Note: Organization of African Unity: The Banjul Charter on Human and People's Rights,' International Legal Material (ILM) 21 (1982) 58. See also Kasozi George W.K.L. 'How well suited is the Banjul Charter to Promote and Protect Human Rights as compared with other International

suitable for the African continent should reflect the philosophical orientation and disposition of the African values the continent hold, as suggested. As to whether there is a common African value shared by the whole continent that is another matter, which may be examined. We should also mention here that the preamble to the Charter tells a different story when it alludes to the fact that there should be a link between the universality of human rights and the African customs and tradition. The preamble provides inter alia:

...Reaffirming the pledge they solemnly made in Article 2 of the said Charter to eradicate all forms of colonialism from Africa,

to coordinate and intensify their cooperation and efforts to achieve a better life for the peoples of Africa and to promote international cooperation having due regard to the Charter of the United Nations and the Universal Declaration of Human Rights;

Taking into consideration the virtues of their historical tradition and the values of African civilization which should inspire and characterize their Reflection on the concept of human and people's rights;

In June 1981 the O.A.U. adopted unanimously the African Charter on Human and Peoples Rights. This was during the eighteenth Assembly of Heads of State and Government of the O.A.U. The Charter took two years to draft, and its adoption was seen as an historic step towards the protection of human rights in Africa.

It has been observed by Prof. Rembe that the adoption of the African Charter was a result of a series of efforts and pressures generated from within and outside Africa, for the promotion and protection of human rights.⁵⁴

Instruments'. Essay No.3, Submitted to the University of Hull England, UK for partial requirements of LL.M Degree, 1987.

⁵⁴ Rembe NS, The System of Protection of Human Rights under the African Charter on Human and People's Rights; Problems and Prospects, Human and People's Rights Monograph Series No. 6 Institute of Southern Africa Studies (ISAS) – National University of Lesotho (NUL) Roma, Lesotho, 1991 p1.

The Charter entered into force on 21st October 1986 after the required number of states ratified it.⁵⁵ Due to time constraints it was not possible to get data on ratification status. The students should get the data on their own.

The legal basis for the African Charter on Human and People's Rights is contained in article II (1) (b) of the Charter of the Organization of African Unity, which obliges member states to:

Coordinate and intensify their efforts to achieve a
Better life for the people of Africa⁵⁶.

3.4 The Charter and Rights Protected:

The Charter, which is said to be the newest, least developed or effective, in relation to the European and the Inter American regimes⁵⁷, guarantees many civil, political and economic rights, including the right to life, the right not to be tortured, freedom from arbitrary arrest and detention, the right to a fair trial, the right of equal protection of the law, freedom of expression, association and assembly.

It also provides for collective rights characterized as people's rights, such as the right to self-determination, the right to a clean environment, and the right to development.

The Charter also imposes duties on the people as well as states within the jurisdiction of the Charter. These include the obligation to respect one's parents and to help them in case of need, and the obligation to strive at all times to promote and achieve African unity. As far as states are concerned, they are enjoined to assist the family to uphold and promote morals and traditional values of the community and to guarantee the right to development⁵⁸.

3.5 The Institutional Structure of the African System:

⁵⁵ Find out the status of ratification of the African Charter.

⁵⁶ See also Henry J Steiner and Philip Alston: International Human Rights in Context: Law Politics, Morals, Oxford University Press, Second Edition, p 921.

⁵⁷ Ibid p 920.

⁵⁸ See Kisanga supra, p 27.

3.5.1 The Commission on Human and People's Rights

The African Commission on Human and People's Rights, compared to the Inter American Commission and the European Commission of Human Rights, (until it was merged with the European Court of Human Rights in 19....), is relatively new. It was established in 1987, thus as of June 2003, it has had only 15 years of experience.

The Commission is established in terms of Article 31 of the African Charter on Human and People's Rights. It states that:

1. The Commission shall consist of eleven members chosen from amongst African personalities of the highest reputation, known for their high morality, integrity, impartiality and competence in matters of human and People's Rights, particular consideration being given to persons having legal experience.
2. The members of the Commission shall serve in their personal capacities.

The mandate of the Commission is contained in Article 45, which provides as follows.

The functions of the Commission shall be:

1. To promote Human and People's Rights and in particular:
 - (a) to collect documents, undertake studies and researches on African problems in the field of human and people's rights, organize seminars, symposia, and conferences, disseminate information, encourage national

and local institutions concerned with human and people's rights, and should the case arise, give its views or make recommendations to Governments.

- (b) to formulate and lay down, principles and rules aimed at solving legal problems relating to human and people's rights and fundamental freedoms upon which African Governments may base their legislation
- (c) cooperate with other African and international institutions concerned with the promotion and protection of human and people's rights.

2. Ensure the protection of human and people's rights under conditions laid down In the Charter.
3. Interpret all the provisions of the present Charter at the request of a state party, Institutions of the OAU or an African Organization recognized by the OAU.
4. Perform any other task which may be entrusted to it by the Assembly of Heads of State and Government.

3.5.2 Formation of the African Court on Human and Peoples Rights

3.5.3 Protocol on the Rights of Women in Africa

The African Charter on Human and People's Rights, (ACHPR) 1981 guarantees enjoyment of human rights.

Protocol on the Rights of Women in Africa, adopted on 11th July 2003, by the

African Union. This protocol supplements the ACHPR)

It is the first Protocol to address women's rights including reproductive rights

Test It is said to be a groundbreaking Protocol, for the first time in international law, explicitly sets forth the reproductive right of women to medical abortion when pregnancy results from rape or incest or when the continuation of pregnancy endangers the health or life of the mother.

The Protocol also explicitly calls for the legal prohibition of female genital mutilation, and prohibits the abuse of women in advertising and pornography. The Protocol sets forth a broad range of economic and social welfare rights for women. The rights of particularly vulnerable groups of women, including widows, elderly women, disabled women and "women in distress," which includes poor women, women from marginalized populations groups, and pregnant or nursing women in detention are specifically recognized

Status of Ratification of the Protocol on the Rights of Women in Africa

The countries that have ratified the Protocol as of 26 February 2008 are twenty-three:

Angola, Benin, Burkina Faso, Cape Verde, The Comoros, Djibouti, The Gambia, Ghana, Lesotho, Libya, Malawi, Mali, Mauritania, Mozambique, Namibia, Nigeria, Rwanda, Senegal, Seychelles, South Africa, Tanzania, Togo and Zambia.

- **Uganda: Abortion Complicates Ratification of Protocol on Women's Rights**
- [TheMonitor](#) (Kampala) 31 October 2007

Posted to the web 30 October 2007

Kakaire A. Kirunda

The government is under renewed pressure to embrace the protocol to the African charter on human and peoples' rights on the rights of women in Africa, also known as the Maputo Protocol.

Women activists demanded ratification of the protocol at a recent workshop in Kampala. The protocol, which came into force in October 2005, covers a broad range of women's rights ranging from the elimination of discrimination against women to health and reproductive rights. However, Article 14 of the protocol that calls for the legalisation of medical abortion especially in cases of sexual assault, rape and incest has drawn criticism from religious leaders.

Reproductive rights activists have since argued that the continued failure by several Africa Union Governments has greatly contributed to maternal mortality. In Uganda alone, maternal mortality stands at close to 500 per 100,000 live births.

And an estimated 300,000 abortions (most of them unsafe) are carried out every year. Although the protocol espouses the right to life, its support for "reproductive rights" has been interpreted as a nod of approval to abortion.

Soon after its adoption by the 2nd ordinary session of the Assembly of the African Union in July 2003, opposition to the protocol started and has never relented. The onslaught is led by Catholic bishops.

"This Protocol is the slow but sure destruction of fundamental African values: Respect for life, the importance of the family, motherhood, fertility and marriage. All of these values are ignored by the Protocol," allafrica.com quoted the former Guinea Conakry Archbishop Robert Sarah at the end of the Vatican's 15th missiology meeting in early July.

Her message has been echoed by counterparts from Kenya, Burundi, DR Congo, Tanzania, Mozambique among others. The Uganda Joint Christian Council (UJCC) last year sought intervention from President Yoweri Museveni.

"We request President Museveni and the delegation that will represent Uganda at the upcoming meeting of the African Union in Addis Abba to reject any policy that would expose Uganda in particular, and Africa as a whole, to mass murder through the legalisation of abortion," UJCC's Deputy Secretary for Finance and Administration, Sylvester Arinaitwe wrote

Since October 26, 2005, 22 countries have ratified the Protocol. But why is Uganda not among these countries? Is it that the religious leaders have emerged the victors? Or is it that since the Uganda Constitution has been

hailed as one of the most progressive the world over, it takes care of the Maputo protocol requirements and there is no need to domesticate the latter.

In a recent interview, the State Minister for Gender, Ms Rukia Nakadama Isanga said while Uganda was yet to ratify the Maputo protocol, most of its requirements have been answered through various policies in place.

"You may not notice it but for every issue raised in each of the articles of the protocol we have a policy in place that is gender sensitive. The Constitution too ably addresses most of these issues.

"But this does not mean that Uganda will not accept the protocol. These issues shall be presented to Parliament, debated and a decision will be made and there is nothing that shall then stop us from appending our signature," said Isanga.

On the clergy's concerns, Isanga said, "Their main problem is abortion. And remember we are a God fearing country as reflected in our motto (For God and My Country). But I must also say that no one would want to see women dying as a result of botched up abortions. We need to devise ways of preventing scenarios that may lead to unwanted pregnancies. We need to rebuild the moral fibre."
